2024

LEARNER MANUAL

Contents

LIST OF FIGURES 3
LIST OF TABLES 4
LIST OF ACRONYMS 5
CURRICULUM FOR THE MIGRATION MANAGEMENT MODULE 7
TOPIC 1: MIGRATION MANAGEMENT 9
1.1. OVERVIEW OF THE OSBP CONCEPT 11
1.2 KEY DEFINITIONS AND CONCEPTS OF MIGRATION 13
1.3. CAUSES OF MIGRATION: BEYOND PUSH AND PULL FACTORS 17
1. MIGRATION AND DEVELOPMENT 18
1.5 MIGRATION TRENDS IN EAST AFRICA 19
1.6 DEMOGRAPHIC CHARACTERISTICS OF MIGRANTS IN EAST AFRICA 21
1.7 MIGRATION AND TOURISM IN EAST AFRICA 22
1.8 MIGRATION MANAGEMENT AT THE OSBP 23
TOPIC 2: THE LEGAL FRAMEWORK FOR MIGRATION 26
2.1 INTERNATIONAL LAW 26
2.2 INTERNATIONAL MIGRATION LAW 27
2.3. INTERNATIONAL HUMAN RIGHTS LAW 27
2.4 INTERNATIONAL REFUGEE LAW 32
2.5 INTERNATIONAL CRIMINAL LAW 32
2.6. INTERNATIONAL HUMANITARIAN LAW 34
2.7. REGIONAL AGREEMENTS ON MIGRATION 35
2.8. EAC SPECIFIC AGREEMENTS ON MIGRATION 37
2.9 NATIONAL MIGRATION LAWS, POLICIES AND REGULATIONS 39
2.9. INSTITUTIONAL FRAMEWORK FOR THE OSBP 41
2.10 SOFT LAW INSTRUMENTS AND OTHER GUIDANCE 43
TOPIC 3: TRAVEL DOCUMENTS 48
3.1 CATEGORIES OF TRAVEL DOCUMENTS 48
3.2 IDENTIFICATION OF PASSPORTS AND TRAVEL DOCUMENTS 53
3.3 ISSUING AND VERIFYING TRAVEL DOCUMENTS 54
3.4 TRAVEL DOCUMENT SECURITY FEATURES 57
3.5 DEFINITION AND TYPE OF VISAS 57
3.6 DEFINITION AND TYPES OF PASSES 60
3.7 PROCEDURES OF APPLYING VISAS AND PASSES 62

TOPIC 4: MIGRATION CLEARANCE PROCEDURES 63
4.1 COMPLIANCE WITH ENTRY/EXIT REQUIREMENTS 64
4.2. CHALLENGES IN BORDER CLEARANCE AT THE OSBP 67
TOPIC 5: PROFESSIONAL CONDUCT IN MIGRATION MANAGEMENT 68
5.1 BACKGROUND TO PROFESSIONAL CONDUCT IN MIGRATION 68
5.2 TENETS OF PROFESSIONAL CONDUCT IN MIGRATION 68
TOPIC 6: MANAGEMENT OF CROSS BORDER COMMUNITIES 73
6.1 MANAGEMENT OF POROUS BORDERS 73
6.2 CHARACTERISTICS OF BORDER COMMUNITIES 74
6.3 FACILITATION OF BORDER COMMUNITIES 74
6.4 BORDER COMMUNITY ENGAGEMENT 75
6.5 CONFLICT RESOLUTION MECHANISMS 76
TOPIC 7: TRANSNATIONAL ORGANISED CRIME 79
7.1 TYPES OF TRANSNATIONAL ORGANIZED CRIME 80
7.2 CAUSES OF TRANSNATIONAL ORGANIZED CRIME IN EAST AFRICA 81
7.3 STRATEGIES FOR DETECTING CRIMINAL ACTIVITIES AT AN OSBP 82
7.4 STRATEGIES FOR KNOWLEDGE-SHARING ON CRIMINAL ACTIVITIES AT AN OSBP 83
7.5 TRAFFICKING IN PERSONS 85
7.6 SMUGGLING OF MIGRANTS 89
7.7 TERRORISM IN EAST AFRICA 92
TOPIC 8: MANAGING ORDERLY MIGRATION IN TIME OF CRISIS 96
8.1 VULNERABLE MIGRANTS 96
8.2 HUMANITARIAN BORDER MANAGEMENT 100
8.3 NATURAL DISASTERS IN AN OSBP SETTING 107
8.4 HEALTH CRISES AND PANDEMICS IN AN OSBP SETTING 113
REFERENCES 119

LIST OF FIGURES

Figure 1: Example of Laissez- Passez for the Republic of Rwanda……..……51

Figure 2: Summary of Migration Procedures……..……..63

Figure 3: The IOM Determinants of Migrant Vulnerability Model…….…….98

Figure 4: IOM's Three Stages of Intervention for Humanitarian Border Management…….101

Figure 5: The mobility continuum and its links with communicable disease prevention, detection, and response……...……..116

LIST OF TABLES

Table 1: Push and Pull Factors for Migration in the EAC……...18

Table 2: International Human Rights Treaties……...29-30

Table 3: Summary of International Laws, Conventions, Agreements, and Guidance Material Relevant to Migration in EAC ……..……...46-47

Table 4: Targeted Frameworks on DRR Relevant to Migration……...111

Table 5: Targeted Frameworks on Health Relevant to Migration Management…….....114-115

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LIST OF ACRONYMS

API	Advance Passenger Information
AU	African Union
BCP	Business Continuity Plan
BMIS	Border Management Information System
CBM	Coordinated Border Management
CMW	Committee on the Protection of the Rights of All Migrant Workers and Members of their Families
COVID-19	Coronavirus Disease
CRMW	Convention on the Protection of the Rights of All Migrant Workers and Members of their Families
CTC	Counter-Terrorism Center
DRR	Disaster Risk Reduction
EAC	East African Community
EoHA	East and Horn of Africa
EOC	Emergency Operations Centre
GCTF	Global Counterterrorism Forum
GCM	Global Compact for Safe, Orderly, and Regular Migration
HBM	Humanitarian Border Management
HFA	Hyogo Framework for Action

HHBM	Humanitarian Health Border Management
ICAO	International Civil Aviation Organization
IGAD	Intergovernmental Authority on Development
ILO	International Labour Organization
IO	Immigration Officer
IOM	International Organization for Migration
MRP	Machine-readable passport
MRTD	Machine Readable travel Document
NGO	Non-Governmental Organization
NII	Non-Intrusive Inspection
OAU	Organization of African Unity
OSBP	One Stop Border Post
PHEIC	Public Health Emergency of International Concern
PNR	Passenger Name Record
PPE	Personal Protective Equipment
RFID	Radio Frequency Identification
SDGs	Sustainable Development Goals
SOPs	Standard Operating Procedures
UNHCR	United Nations High Commissioner for Refugees
UN	United Nations
UNODC	United Nations Office on Drugs and Crime
WHO	World Health Organization

CURRICULUM FOR THE MIGRATION MANAGEMENT MODULE

MODULE TITLE

Migration management at the One Stop Border Post (OSBP)

COURSE DESCRIPTION

The One Stop Border Post (OSBP) concept is a unique approach to improving efficiency at land border crossings to facilitate trade, the movement of people, and maintain security, by combining the stops required for processing exit and entry formalities of adjoining States at one location. In Africa, OSBPs have been gradually introduced over the last decade, following studies that observed that African States were not able to fully benefit from intra-African trade due to long waiting times at ports, borders, and checkpoints, and high logistics costs. This situation is also particularly acute for landlocked countries in Africa, where border delays and transport costs are among the highest the world[1].

Operating OSBPs requires close cooperation among all agencies present at border stations including immigration, police, customs, health, and participating agencies. Successful cooperation among the border agencies and the efficient delivery of services at OSBPs, however, depends on continuous capacity building for personnel involved. This Module on Migration Management at OSBPs is designed to facilitate stakeholders in attaining the necessary knowledge and skills related to OSBPs in the East African Community (EAC) region.

The module also provides an opportunity for stakeholders to learn about which migration regulatory frameworks are applicable at OSBPs in the EAC region; develop an awareness of migration and related issues at OSBPs; and strengthen their overall capabilities to function effectively in a dynamic environment.

[1] AUDA – NEPAD, JICA, 2017.

COURSE OBJECTIVES

The module seeks to achieve the following objectives:

i. Enhance efficiency in border clearance procedures
ii. Facilitate safe and regular cross-border movements
iii. Enhance management of cross-border movements during crisis
iv. Build the capacity of partner States to respond to emerging challenges and risks at OSBPs

LEARNING OUTCOMES

At the end of the module, participants will be able to:

i. Define the nature and role of migration services in an OSBP context
ii. Describe the OSBP regulatory framework in relation to migration in the EAC
iii. Describe the nature of travel documents applicable to the EAC region
iv. Apply migration and OSBP principles and practices when dealing with travellers and border emergencies
v. Identify challenges affecting migration work at OSBPs and applicable solutions

DELIVERY METHODS

The module will be delivered through multidimensional learning methodologies including: lectures, group discussions, case studies, and role play exercises, among others. The delivery approaches that will be applied will include face-to-face, online, and/or blended approaches.

TARGET GROUP

The module is intended for regulatory agencies and stakeholders at the borders.

TOPIC 1: MIGRATION MANAGEMENT

The **volume of migration** worldwide has increased over the past five decades with global estimates indicating that there were around 281 million international migrants in 2020, equivalent to 3.6 per cent of the global population.[2] This is 128 million more international migrants than in 1990, and over three times the estimated number in 1970. More than 108.4 million people are currently forcibly displaced worldwide, including 62.5 million people currently displaced within their own countries – uprooted by conflict, violence and disasters.[3]

Migration is defined by the International Organization for Migration (IOM) as the movement of persons away from their place of usual residence, either across an international border or within a State. While there is no universally accepted definition of migration, according to IOM, a person who moves away from his or her place of usual residence, whether within a country or across an international border, temporarily or permanently, and for a variety of reasons is a **migrant**. The concept of migration includes several categories of people on the move, such as migrant workers, refugees, and international students, among others. Any person crossing an international border must follow the mandatory legal procedures to obtain a permit to enter/exit a country.

Migration management refers to the set of policies, programmes, and activities that are designed to facilitate the movement of people across national borders in a safe, orderly, and humane manner. It involves the regulation of the entry, stay, and exit of foreign nationals, as well as the management of the economic, social, and political implications of migration. Effective migration management aims to balance the interests of sending and receiving countries, protect the rights and responsibilities of migrants and refugees, and ensure that migration contributes to development and economic growth. It involves collaboration between different actors, including governments, international organizations, civil society groups, and migrants themselves. Key interventions on migration management include, but are not limited to, border control and visa regimes, integration policies for immigrants,

[2] IOM, 2022.
[3] UNHCR, 2022a.

mechanisms for protecting refugees and asylum seekers, and initiatives to combat human trafficking and smuggling.

In the context of the East African Community (EAC), migration management is a complex issue, as the region is home to a large number of refugees and migrants who come from various countries in the region and beyond. The **East African Community (EAC)** is a regional economic bloc that includes eight Member States: Kenya, Tanzania, Uganda, Rwanda, Burundi, the Democratic Republic of the Congo (DRC), South Sudan, and Somalia. The addition of the DRC to the EAC in July 2022 makes the region home to approximately 300 million people, representing one-quarter of Africa's entire population.[4] The addition of Somalia to the EAC in November 2023 will further increase this number by additional 13 million people.[5]

The management of migration in East Africa involves various stakeholders, including governments, international organizations, non-governmental organizations, and local communities. However, one of the key challenges in migration management in East Africa is the lack of a coordinated approach among the various stakeholders involved. Different countries have different policies and approaches towards migration, which can create confusion and inconsistencies in the management of migration in the region. The high level of irregular migration also poses a challenge for migration management in the region, as many migrants and refugees in the region do not have legal status, making them vulnerable to exploitation and abuse. The lack of coordination and high rates of irregular migration can also lead to gaps in the provision of services to migrants and refugees, including access to healthcare and education.

Understanding migration in the context of East Africa is thus important when defining **intervention plans** and increasing prevention efforts, particularly against transnational organized crime. To address persisting challenges, the EAC recently established its first Regional Consultative Process on Migration[6], a framework for the management of migration in the region, which aims to promote

[4] EAC, 2022a
[5] Caato, 2023.
[6] EAC, 2022b.

cooperation and coordination among Member States. The framework focuses on issues such as border management, refugee protection, and the prevention of human trafficking. Other initiatives in the region include the establishment of regional migration centres and the development of programmes to assist migrants and refugees. These programmes aim to provide essential services to migrants and refugees, such as legal assistance, healthcare, and education.

In this context, the establishment of **OSBPs** is a key intervention that can promote better migration management, coordination, and integration among partner States in the EAC. In Africa, the concept of an OSBP is relatively new, with the Chirindu OSBP – between Zambia and Zimbabwe – established in 2000, considered the first fully functional OSBP in the region. However, border integration projects are now proliferating across the region, including in the EAC[7]. Ensuring that OSBPs are effective, however, requires robust coordination and cooperation among Partner States at all levels.

This **training manual** assesses how partner States can better manage migration, and particularly how partner States can facilitate the regular movement of persons across an international border, while ensuring national security and protection for vulnerable populations. Given the importance of OSBPs for enhancing security and protection and improving international relations, EAC border officers should be equipped with the knowledge and necessary skills to manage the flows of persons within the context of an OSBP set-up.

1.1. OVERVIEW OF THE OSBP CONCEPT

The OSBP concept refers to the legal and institutional framework, facilities, and associated procedures that enable goods, people, and vehicles to stop in a single facility in which they undergo controls following applicable regional and national laws to exit one state and enter an adjoining one. The OSBP concept thus promotes a coordinated and integrated approach to facilitating trade, the movement of people, and improving security, which results in reduced journey times for transporters and travellers.

OSBPs also require a joint and integrated border management approach where border agencies in neighboring countries collaborate to manage and operate the border post. This includes sharing

[7] Ibid.

information, resources, and infrastructure to facilitate trade and ensure border security. Effective joint cooperation also requires both vertical and horizontal collaboration, including between local and national government authorities, as well as between agencies on either side of a border post.

The OSBP concept also consists of four pillars:

(i) **Legal and institutional framework:** As the application of national laws is limited to the territory of a State under international law, OSBPs rely on the principle of extraterritorial application of laws, which allows a state to extend the application of specific national laws outside its own territory. Effective operation of a OSBP requires the various government agencies responsible for border controls to operate in a coordinated manner.

(ii) **Simplification and harmonization of procedures:** To ensure that the OSBP can fulfil their objective of eliminating inefficiencies at a border crossing, it is essential to also simplify and harmonize border crossing procedures to ensure that OSBPs can run efficiently.

(iii) **ICT and data exchange:** An effective OSBP also requires a collaborative single window systems, simplification of documentation, border management, and modernization of customs, immigration, and related systems, all of which require ICT and data exchange.

(iv) **Hard infrastructure:** An OSBP requires facilities such as offices for border officials, operational equipment, warehouses, and parking.[8]

1.2 KEY DEFINITIONS AND CONCEPTS OF MIGRATION[9]

MIGRATION

Migration can be understood as an umbrella term, not defined under international law, which describes a person who moves away from his or her place of usual residence, whether within a country or across an international border, temporary or permanently, and for a variety of reasons.

REFUGEE

A refugee, which is a specified legal category as defined by the 1951 Refugee Convention, is a special case in the process of migration (see below). Migration can have a significant impact on both the places people leave and move to, as it affects the demographics, culture, and economy of both areas, and can have significant social and political consequences.

ASYLUM-SEEKERS

Asylum-seekers are those who seek international protection. In countries with individualized procedures, an asylum-seeker is someone whose claim has not yet been finally decided on by the country in which they have submitted it. Not every asylum-seeker will ultimately be recognized as a refugee, but every recognized refugee is initially an asylum-seeker.

CROSS-BORDER MOVEMENT

The movement of people from one country to another for various reasons, such as for work, health, education, trade, or family reunification.

DISPLACED PERSONS

Persons or groups of persons who have been forced or obliged to flee or to leave their homes or places of habitual residence, either across an international border or within a State, in particular as a result of or in order to avoid the effects of armed conflict, situations of generalized violence, violations of human rights or natural or human-made disasters.

[9] IOM, 2019a.

ECONOMIC MIGRATION

The movement of people from one region to another, including across international borders, for the purpose of improving one's standard of living.

EMIGRATION

Emigration is the act of moving from one's country of nationality of usual residence to another country with the intent to permanently relocate, so that the country of destination effectively becomes his or her new country of usual residence. Emigration simply refers to the process of exiting or leaving leave a country legally or illegally. A person who is leaving one country to live in another is known as an **emigrant**. Emigrants need to be checked by both countries of origin and destination, regardless of their citizenship. That is why it is important to implement a clear process for leaving a country.

ENVIRONMENTAL MIGRATION

A person or group(s) of persons who, predominantly for reasons of sudden or progressive change in the environment that adversely affect their lives or living conditions, are forced to leave their places of habitual residence, or choose to do so, either temporarily or permanently, and who move within or outside their country of origin or habitual residence. Climate migration is a sub-category of environmental migration, where the change in the environment is due to climate change.

HUMANITARIAN BORDER MANAGEMENT (HBM)

Border operations carried out before, during and after humanitarian crises which trigger mass cross-border migration. It aims to improve preparedness of border authorities to respond appropriately to cross-border movements arising from both natural and man-made disasters, in a way that protects crisis-affected migrants and guarantees their human rights and interests, while respecting national sovereignty and security.

FAMILY REUNIFICATION (RIGHT TO)

The right to non-nationals to enter and reside in a country where their family members reside lawfully or of which they have the nationality to preserve the family unit.

IMMIGRATION

Immigration is the opposite of emigration; it is the process by which a person enters a country from another to make a new home permanently or temporarily. This means that immigration is defined as the act of moving into a country other than one's country of nationality or usual residence, so that the country of destination effectively becomes his or her new country of usual residence, whether by legal or irregular means. A person who enters a country from another to make a new home is known as an immigrant. Like emigrants, immigrants need to be checked before entering a country.

INTERNATIONAL MIGRATION

The movement of persons away from their usual residence and across an international border to a country of which they are not nationals. International migration in the region is driven by factors such as seeking employment, education, and family reunification.

INTERNAL MIGRATION

The movement of people within a State involving the establishment of a new temporary or permanent residence. Internal migration movements can be temporary or permanent and include those who have been displaced from their habitual place of residence such as internally displaced persons, as well as persons who decide to move to a new place, such as in the case of rural-urban migration.

IRREGULAR MIGRATION

Although a universally accepted definition of irregular migration does not exist, the term is generally used to identify persons moving outside regular channels, meaning outside the laws, regulations, or international agreements governing the entry into or exit from the State of origin, transit, or destination. This does not relieve States from the obligation to protect their rights. Moreover, categories of migrants who may not have any choice but to use irregular migration channels can also include refugees, victims of trafficking, or unaccompanied migrant children.

LABOUR MIGRATION

The movement of people from one State to another, or within their own country of residence, for the purpose of employment. Labour migration can be seasonal, temporary but not seasonal, circular

or recurrent, indefinite, or permanent, and can involve any level of skill. Labor migrants often send remittances back to support their families or return to visit them regularly.

MIXED MIGRATION

The cross-border movement of people, including refugees fleeing persecution and conflict, victims of trafficking (VoTs), and people seeking better lives and opportunities, who are motivated to move by a multiplicity of factors. Mixed migration describes refugees and migrants traveling along similar routes, using similar means of travel – often traveling irregularly, and wholly or partially, assisted by migrant smugglers.[10]

MOBILITY CONTINUUM

The mobility continuum encompasses the complete pathway of movement, temporary or long-term, within or across borders: points of origin, transit, destination; routes through various modes of travel; and congregation points along the way.

REFUGEES

Refugees are protected in international law by the 1951 Refugee Convention, which defines a refugee as 'Someone unable or unwilling to return to their country of origin owing to a well-founded fear of being persecuted for reasons of race, religion, nationality, membership of a particular social group, or political opinion, or membership in a particular social group.'

The Refugee Convention includes the principle of non-refoulement, which prohibits countries from returning refugees to their country of origin if they would be at risk of persecution there. The convention requires countries to provide refugees with access to legal protection, including the right to work, education, health care, and the right to move freely within the country. The convention also recognizes the importance of family unity and requires countries to allow refugees to join their families.

SAFE, ORDERLY, AND REGULAR MIGRATION

The movement of persons in keeping both with the laws and regulations governing exit from, entry and return to and stay in States and with States' international law obligations, in a manner in which

[10] Mixed Migration Centre (MMC), n.d.

the human dignity and well-being of migrants are upheld, their rights are respected, protected and fulfilled, and the risks associated with the movement of people are acknowledged and mitigated. The objective of ensuring safe, orderly, and regular migration is highlighted in both the Global Compact on Migration (GCM), and target 10.7 of the Sustainable Development Goals (SDGs).[11]

TRANSHUMANCE/SEASONAL MIGRATION

The seasonal movement of people with their livestock between pastures (typically between mountain and low-land pastures) often over long distances, and sometimes across borders.

TRANSNATIONALISM

The concept of transnationalism refers to multiple ties and interactions linking people and institutions across State borders.

VOLUNTARY MIGRATION

The movement of people who choose to migrate for various reasons such as seeking better opportunities, education, or a better quality of life. A characteristic feature of this type of migration is that it is a choice and not a necessity.

1.3. CAUSES OF MIGRATION: BEYOND PUSH AND PULL FACTORS

Traditional academic theories on the causes of migration are based on the "push and pull" model, whereby push factors include those that encourage a migrant to leave their home, such as low incomes, while pull factors are those that draw migrants towards a new destination, such as the promise of higher wages.[12]In the context of the EAC, the various push and pull factors include those related to economic instability and lack of job opportunities, peace and security, environmental factors and climate change, social and demographic factors, including education and training opportunities, family reunification, or marriage, and health factors/access to social services, including others, as illustrated below.

[11] OHCHR, 2018.
[12] Hear, V., Bakewell, O., Long, K., 2017.

Table 1: Push and Pull Factors for Migration in the EAC

Push Factors	Pull Factors
Economic instability or lack of opportunities	Economic stability and job opportunities
Political instability, persecution, or conflict	Political stability and conflict
Environmental factors such as natural disasters, climate change, or environmental degradation	More habitable environments and access to natural resources
Social factors such as family reunification, education, or marriage	Better education and training opportunities
Demographic factors such as ageing populations or imbalances in male-to-female ratio	Demographic advantages such as a younger population or a more balanced gender ratio
Health factors such as disease outbreaks or limited access to healthcare	Better healthcare and health outcomes

These factors are not mutually exclusive; in fact, migration is often the result of a combination of push and pull factors. Additionally, the relative importance of push and pull factors can vary depending on the individual and their specific circumstances. Importantly, more recent academic research has also highlighted the role that a migrants' individual agency plays in the migration decision-making process, which is in turn influenced by the larger social context in which they live.[13]

1. MIGRATION AND DEVELOPMENT

Investing in development within a country of origin has historically been understood as one of the ways to stem migration. However, contemporary migration literature has underlined that the migration-development nexus is far more complex, as development and increases in personal income can stimulate migration in the short-term by providing the resources needed for people to move. Additionally, better quality education can increase both the ability to migrate and the desire to migrate, through increased aspirations. It is thus essential to complement traditional models of migration based

[13] Ibid.

on push and pull factors with a more nuanced approach, that also considers mediating factors such as social networks, improved communication, government migration policies, conflicts, trade competition between countries, and more. Approaches that consider this holistic approach to migration and development are also needed to help capitalize on the benefits of migration as a powerful driver for sustainable development. For example, migration can contribute positively to inclusive economic growth and cultural diversity through skills transfer, investments and financial resources, remittances, diaspora engagement, filling labour gaps and strengthening the labour force, and contributing to the exchange of ideas and technological innovation.

However, if migration is not mainstreamed in national policies and planning, this can limit the possibility for countries and societies to benefit from migration. A lack of inclusive policies and migrant-sensitive programs, may lead to negative consequences as xenophobia, undermining the ability of migrants to positively contribute to sustainable development outcomes. Migrants may be unable to fulfil their full potential due to constraints such as lack of access to decent work and basic services, including health and education, lack of access to citizenship or legal identity, and social exclusion. Realizing the full potential of the migration-development nexus calls for greater partnerships between countries of origin, transit, and destination, as well as the adoption of a migration-centered lens when designing both development and migration-focused interventions. The use of migration data should also be improved to support the design of evidence-based outcomes that can support this objective. [14]

1.5 MIGRATION TRENDS IN EAST AFRICA

East Africa is characterized by all types of migration. Some of the major migration flows in the region include intra-regional, rural-urban migration, and intra-urban migration. Key factors that have contributed to migration in the region include conflict, severe droughts and other environmental and climate triggers, and the motivation to pursue a better life and livelihood opportunities, which have been exacerbated by the current cost-of-living crisis. Several key figures related to migration trends in East Africa are highlighted below:

[14] Nyberg-Sorensen, et al., 2022; EAC, n.d.a.; IOM, 2020.

- **International migrants:** As of 2019, there were around 5 million international migrants in the EAC region, equivalent to 2.8 per cent of the population[15]. Major international migration flows in the region include labour migration to the Middle East – particularly to countries of the Gulf Cooperation Council (GCC) - refugee movements, and cross-border trade and commerce.
- **Refugees and asylum-seekers:** As of mid-2022, there were 22.3 million displaced people in the East and Horn of Africa (EHoA) region, of which 5.4 million were refugees and asylum-seekers. Of these 5.4 million, EAC States were countries of destination for 3.4 million refugees and asylum seekers, with Uganda as the main country of destination. In East Africa, refugees and asylum-seekers are mostly a result of war or civil war among Member States.
- **Internally displaced people:** By end-2022, the EoHA region hosted 10.7 million internally displaced people.[16]
- **Cross-border migrants:** The East African Community (EAC) is home to eight countries that share borders, and cross-border migration is common in the region. People may move from one country to another for various reasons, including to pursue work opportunities – including in the agriculture, mining, and construction sectors – for better health and educational opportunities, or for family reunification. Data from the Republic of Rwanda also demonstrates that most border crossings are made by persons from neighboring countries, with citizens from the DRC and EAC accounting for 71 percent, and 64 percent, of all border crossings in Rwanda in 2019 and 2020, respectively.[17] People moving across borders also include cross-border traders that live in border communities, with women making up 85 per cent of cross-border traders in the region. A large proportion of cross-border traders operate in the informal sector.
- **Family ties/ reunification:** This is an important factor in migration in East Africa, as many people move to be closer to relatives or to reunite with family members who have already migrated. While EAC citizens have the right of entry as migrant workers with their families,

[15] EAC, 2023a.
[16] UNHCR, 2022b.
[17] EAC, 2023a.

including free processing of work permits and dependents' passes for their families, in practice, some countries are not compliant with extending this right to EAC nationals.

1.6 DEMOGRAPHIC CHARACTERISTICS OF MIGRANTS IN EAST AFRICA

Migrants in East Africa are a diverse group, with varying demographic characteristics depending on their country of origin, reasons for migration, and destination. However, there are some general demographic characteristics of migrants in East Africa:

- **Age:** Migrants in East Africa come from a wide range of age groups, but many are young adults seeking better economic opportunities or fleeing conflict and persecution in their home countries. The population of working age migrants in the EAC reached 3.7 million in 2019, equivalent to seven in every ten migrants being of working age, when defined as any migrant who is 15 years and older.
- **Gender:** Migrants in East Africa include both men and women, although men tend to make up a larger proportion of migrants in some countries. In the EAC region, women represent 46.1 per cent of international migrants, a slight increase from 44.5 per cent in 2019. However, the proportion of female international migrants of working age is higher at 80.5 per cent, compared to male international migrants of working age at 68.4 per cent.[18] In the EoHA region more broadly, female migrants outnumbered male migrants at 51% in 2020, a much higher ratio compared with other parts of the continent. Family structures, including the gender dynamics at play within them, can also contribute to migration patterns.
- **Country of Origin:** Migrants in East Africa come from a variety of countries within and outside the region. In the EHoA, several countries are major countries of destination, while simultaneously being major refugee countries of origin. The largest sending countries in EHoA include South Sudan, the DRC, Sudan, Eritrea, Ethiopia, and Burundi.
- **Education**: Many migrants in East Africa have limited formal education, which can make it challenging to find employment or access services in their destination countries where competition is large. Men also often have more access to education, which results in more men

[18] Ibid.

migrating from and to professional jobs, and more women migrant workers working in informal trades and markets.

- **Employment**: Migrants in East Africa often work in low-paying jobs in sectors such as agriculture, construction, and domestic work, and in the informal sector, where they lack access to basic services. However, some migrants also work in skilled professions, particularly healthcare or engineering. Young people in the region, however, often lack pathways to engage in employment in other states.
- **Health**: Migrants in East Africa face health challenges due to poor living conditions, limited access to healthcare, and exposure to infectious diseases. Migrants are also at risk of mental health problems due to the trauma of displacement and discrimination in their localities. In addition, none of the African Union Member States present for the Abuja Declaration (1998) have achieved their commitment to assign at least 15 per cent of the State's annual budget to health, although some countries in the EAC, like Kenya, Rwanda, and Uganda, have made progress towards population health coverage. Migrants, however, are often not sufficiently included.
- **Legal Status:** Many migrants in East Africa are undocumented or have uncertain legal status, which can make it difficult for them access services or rights and makes them more vulnerable to experiencing significant risks and harm.

1.7 MIGRATION AND TOURISM IN EAST AFRICA

Within the EAC, tourism also plays a small but significant role in encouraging intra-regional migration, although policy-makers have also acknowledged the need to further boost tourism in the region. According to a report from the East African Legislative Assembly, tourism in the EAC increased from 3.5 million people in 2006 to 5.7 million people in 2017. However, despite this increase, this still represents only 8.6% of the African market share, and only 0.3% of the global market share. Tourism also contributed an average of 18.8% to EAC total exports, although the percentage was higher in Rwanda (30.5%) and Tanzania (26%) compared to other EAC partner States.[19]

[19] EAC, 2019.

1.8 MIGRATION MANAGEMENT AT THE OSBP

One-Stop Border Posts (OSBPs) are a key element of migration management. OSBP are physical locations at the border where officials from both countries can conduct all necessary border control procedures, such as immigration, customs, and health checks, in a coordinated and efficient manner. This helps to reduce the time and costs associated with crossing borders, while also improving security by reducing the potential for illegal activities. At the OSBP, both countries involved in border crossings work together to jointly perform border control activities at a single location.

Migration at the OSBPs in East Africa is a critical issue as these border crossing points are often the primary points of entry and exit for migrants entering or leaving the region. Effective migration management is also critical in the EAC, including at OSBPs, to manage security concerns and detect, deter, and prevent transnational organized crime, while also promoting the free movement of persons and trade and investment. Migration at OSBPs in East Africa is often complex and can involve multiple agencies, including immigration, customs, police, and health authorities, among others, as will be elaborated throughout this manual.

Some of the key issues related to migration at OSBPs, which remain relevant in the EAC context, include:

POLICY DEVELOPMENT AND IMPLEMENTATION

The management of migration is a sovereign right and responsibility. Consequently, migration policies have traditionally been developed at the national level. This involves the development and implementation of national policies and strategies on migration management, which also includes specific border management areas such as border control, visa regimes and integrated border management. Given the transnational nature of migration and the many shared challenges that confront States, national migration strategies and policies developed cooperatively among States are more likely to yield effective and sustainable results.

DATA COLLECTION AND ANALYSIS

This involves collecting and analysing data on migration flows, including the number of migrants, their demographic characteristics, and their reasons for migrating. This data is used to inform policy and program development and implementation, as well as operations and deployment of resources along border areas.

BORDER MANAGEMENT

This involves managing the movement of people across national borders, including the control of entry and exit points, the processing of visas and other travel documents, and the management of refugee and asylum-seeker flows. To faciliate joint border management and guide the operation of OSBPs, Standard Operating Procedures (SOPs) should also be developed.

PROTECTION OF MIGRANTS

This involves protecting the rights of migrants, including ensuring that they are not subject to discrimination or exploitation, providing access to basic services such as healthcare and education, and providing legal assistance where needed.

ADDRESSING IRREGULAR MIGRATION

This involves addressing the root causes of irregular migration, including poverty, conflict, and human rights abuses, as well as combating human trafficking and smuggling. As highlighted above, the fact that migrants may use irregular channels does not relieve States from the obligation to protect their rights.

COOPERATION, COORDINATION, AND PARTNERSHIPS IN MANAGING MIGRATION

Migration management is an area for partnership between interested stakeholders and a shared responsibility between States involved in or affected by migratory movements. Continued exploration is required to identify additional ways in which governments, international organizations, non-governmental organizations and other private sector and civil society organizations can work together, through a whole-of-government and whole-of-society approach, to develop greater confidence and effective and joint management tools, technical cooperation, cost, and other responsibility sharing. Cooperation and coordination with other countries, within one country, and between agencies at

both intra-regional and internal levels, is also necessary, including international organizations, and civil society groups to coordinate efforts on migration management, share information and best practices, and ensure that policies are aligned with global standards and principles. To support effective migration management at an OSBP, efforts should also be taken to invest in: (i) capacity-building to ensure that border officials have the necessary skills and knowledge to operate the OSBP more efficiently and effectively; and (ii) monitoring and evaluation mechanisms, to ensure that the impact of the OSBP, including on trade facilitation, revenue collection, and border security, can be measured and continually improved.

TOPIC 2: THE LEGAL FRAMEWORK FOR MIGRATION

The legal framework for migration in East Africa consists of a combination of international, regional and national laws, policies, and agreements.

2.1 INTERNATIONAL LAW

International law is composed of international conventions, customary international law, general principles of law, judicial decisions (or jurisprudence), and the teachings of the most highly qualified legal scholars (publicists) of various nations. At the international level, the principle of state sovereignty is a foundational concept in international law that asserts that each State possesses the exclusive right to govern its internal affairs without undue interference from external actors, and grants States the autonomy to determine their own destinies. However, state sovereignty should be exercised in full conformity with the obligations of the State under international law, including the responsibility to respect, protect, and fulfil human rights, including migrants' rights.[20] That means that while States have the sovereign right to determine their immigration policies and control their borders, these actions must adhere to international human rights standards and obligations. There are also several norms under international law that are non-derogable, meaning that they are binding to all States. These include the principle of non-refoulement, and the prohibition of torture, slavery, racial discrimination, and genocide.

In the context of international migration, the principle of state sovereignty plays a significant role in matters related to admission and stay, detention, and the expulsion of foreign nationals. However, as highlighted above, States must apply these measures in accordance with their obligations under international law, including international human rights law.

- **Admission and Stay**: States have the sovereign authority to determine who is allowed to enter and stay within their territory, which involves the establishment of visa requirements, residence permits, and other legal mechanisms to regulate the entry of foreign nationals.

[20] IOM, 2023a.

- **Detention:** States have the sovereign right to detain foreign nationals who have entered or remained in their territory without proper authorization.
- **Expulsion***:* States have the sovereign authority to expel or deport foreign nationals who do not meet the criteria for admission or whose presence has become unlawful. However, this must be carried out in accordance with the principle of non-refoulement.

2.2 INTERNATIONAL MIGRATION LAW

International migration law is a branch of international law that specifically relates to the movement of persons across borders. While there is no clear definition of international migration law, it is an umbrella term that refers to the collection of applicable norms from diverse branches of international law that reflect the obligations States have assumed on how to manage various aspects of migration and how they should be treated. Various branches of law that have elements that are included in international migration law include: international human rights law, refugee and asylum law, labour and employment law, including labour standards in the form of ILO conventions, nationality law, trafficking and smuggling law, and non-discrimination and racial equality law. International migration law also includes useful non-binding guidance on how to apply legal principles outlined in binding instruments, including agreements established by international organizations, including the United Nations, such as the Recommended Principles and Guidelines on Human Rights and Human Trafficking. The various elements that constitute international migration law, and how they are applicable to migration in the context of the East African Community (EAC) are further elaborated below.

2.3. INTERNATIONAL HUMAN RIGHTS LAW

International human rights law is a body of legal principles, norms, and standards that seek to protect and promote the fundamental rights and freedoms of individuals and groups, regardless of their nationality, ethnicity, gender, migratory status, or other characteristics. International human rights law is established through international treaties, agreements, customary practices, and other sources of international law. This means that all human beings, including migrants and refugees, are entitled to their human rights. The full spectrum of human rights involves respect for, and protection and

fulfilment of, civil, cultural, economic, political, and social rights, as well as the right to development. Human rights are universal – meaning they belong inherently to all human beings –interdependent, and indivisible. There are also several absolute rights from which no derogation is ever allowed, which have become part of customary international law – such as the right to life, the right not to be held in slavery, and the right not to be subject to torture or cruel, inhuman, or degrading treatment or punishment.

The foundation for international human rights law is the Universal Declaration of Human Rights (UDHR), adopted in 1948. The UDHR obliges States to respect, protect, and fulfil the human rights of all people – including refugees and migrants – while incorporating cross-cutting human rights principles including equality and non-discrimination, participation and inclusion, and accountability and rule of law. The International Covenant on Economic, Social and Cultural Rights, and the International Covenant on Civil on Civil and Political Rights and its two Optional Protocols, are also core international human rights treaties. Overall, however, there are widely considered to be nine core international human rights instruments[21]. While only some of these explicitly focus on the rights of migrants, each of them has implications for migrants as all persons – regardless of their migratory status – are entitled to human rights.

[21] OHCHR, n.d.a.

Table 2: International Human Rights Treaties And Relevance To Migration

1	International Convention on the Elimination of All Forms of Racial Discrimination (21 December 1965)[22] *The ICERD addresses the rights of all individuals, including migrants, by emphasizing the need to eliminate racial discrimination. The ICERD also has implications for the protection of migrants' rights particularly when migrants are subject to racial discrimination in their host country.*
2	International Covenant on Economic, Social and Cultural Rights (16 December 1966)[23] • Optional Protocol to the International Covenant on Economic, Social and Cultural Rights (10 December 2008) *All individuals are entitled to fundamental economic, social, and cultural rights, regardless of their nationality or migration status.*
3	International Covenant on Civil and Political Rights (16 December 1966)[24] • Optional Protocol to the International Covenant on Civil and Political Rights (16 December 1966) • Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty (15 December 1989) *All individuals are entitled to fundamental civil and political rights, regardless of their nationality or migration status. This includes the right to life and the right to the prohibition of torture and inhuman treatment, which are non-derogable rights.*
4	Convention on the Elimination of All Forms of Discrimination against Women (18 December 1979)[25] • Optional Protocol to the Convention on the Elimination of All Forms of Discrimination against Women (6 October 1999) *CEDAW applies to all women, regardless of their nationality or migration status. The Convention also includes several provisions of particular relevance to migrant women, including equality before the law, violence against women, and nationality and family rights.*
5	Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment (10 December 1984)[26] • Optional Protocol to the Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment (18 December 2002)

[22] UN, 1965.
[23] UN, 1996a.
[24] UN, 1966b.
[25] UN, 1979.
[26] UN, 1984.

	CAT applies to all individuals within a state's jurisdiction, including migrants. The Convention includes several provisions that particularly relate to migrants, including the protection of vulnerable groups, such as migrants, and the right to non-refoulement.
6	Convention on the Rights of the Child (20 November 1989)[27] • Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography (25 May 2000)[28] • Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict (25 May 2000)[29] *The CRC applies to all children, including migrant children, regardless of their nationality or migration status. This includes the principle of non-discrimination, protection from exploitation and trafficking, and asylum and refugee protection.*
7	International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (18 December 1990)[30] *The ICMW is designed to protect the human rights of migrant workers and their families and to ensure that they are treated fairly and with dignity. The convention applies to all migrant workers and their families, regardless of their legal status or the reason for their migration. [see box 1]*
8	Convention on the Rights of Persons with Disabilities (12 December 2006)[31] • Optional Protocol to the Convention on the Rights of Persons with Disabilities (13 December 2006) *The CRPD applies to all persons with disabilities, including migrants with disabilities.*
9	International Convention for the Protection of All Persons from Enforced Disappearance (23 December 2010)[32] *The ICPPED applies to all persons, regardless of their nationality or migration status. Several provisions could also be relevant to migrants in certain situations, including non-discrimination, notification of detention, and preventing detention in secret places.*

[27] UN, 1989.
[28] UN, 2000a.
[29] UN, 2000b.
[30] UN, 1990.
[31] UN, 2006a.
[32] UN, 2010.

Text Box 1: The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (ICMW)

The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (ICMW) recognizes the important contributions that migrant workers make to their host countries and their countries of origin and seeks to ensure that they can enjoy their human rights and fundamental freedoms. The Convention sets minimum standards for migrant workers and members of their families, with a focus on eliminating the exploitation of workers in the migration process. Importantly, Articles 22 and 23 in the Convention also elaborate the rights of migrant workers facing expulsion, including the right to have recourse to the protection and assistance. However, the treaty has been mostly ratified by migrant-sending States, rather than by States which typically host large populations of migrant workers. Key issues covered in the provisions of the convention include:

i. The right to equal treatment with nationals of the host country in respect of remuneration and working conditions, social security, and access to health care and education.
ii. The right to form and join trade unions and to participate in the activities of trade unions.
iii. The right to family life, including the right to bring family members to the host country and to have access to education and health care for family members.
iv. The right to receive information and advice on their rights and obligations under the law.
v. The right to be protected from discrimination and abusive or exploitative working conditions.
vi. The right to receive adequate housing and to enjoy the cultural life of the host country.

2.4 INTERNATIONAL REFUGEE LAW

International refugee law is a branch of international law that addresses the challenges faced by refugees and seeks to ensure that their rights are respected and upheld. States which are party to the 1951 Convention relating to the Status of Refugees and the 1967 Protocol[33], collectively termed the Refugee Convention, have an obligation to respect the individual right to seek asylum, and should not penalize a refugee who crosses an international border unlawfully for this purpose. These States are also committed to refraining from returning a refugee to a country where they have grounds to fear persecution on the basis of the reasons outlined above, in line with the principle of non-refoulement. The Refugee Convention provides the framework to elaborate on to whom and in what form asylum should be offered. As such, the Refugee Convention is part of the panoply of international human rights instruments. The Refugee Convention has since been ratified by 149 countries, including all countries in East Africa.

The 1967 Protocol is a legal instrument that supplements and expands the protection offered by the 1951 Refugee Convention.[34] It was adopted by the United Nations General Assembly in 1967, in response to the growing number of refugees worldwide, particularly those outside of Europe. The 1967 Protocol reaffirms the principle of non-refoulement, and the provision related to rights and benefits, while extending the rights and benefits to all refugees – regardless of their date of arrival in the host country. The protocol also expands the definition of a refugee by removing the geographic and temporal restrictions, and extending protection to refugees who have fled their countries of origin for any reason, and who are unable or unwilling to return due to a well-founded fear of persecution.

2.5 INTERNATIONAL CRIMINAL LAW

International criminal law encompasses several international treaties and conventions that establish the legal framework for prosecuting individuals for serious crimes of international concern. The main crimes under international law are genocide, war crimes, crimes against humanity, and the crime of aggression. Key treaties and conventions include:

[33] United Nations, 1951; United Nations, 1967
[34] Cherubini, 2014

THE CONVENTION AGAINST TRANSNATIONAL ORGANIZED CRIME

The Convention against Transnational Organized Crime, which was adopted on 15 November 2000[35], is the main international instrument in the fight against transnational organized crime. The Convention signifies the recognition by Member States of the problems caused by transnational crime, as well as the need to foster and enhance close international cooperation to tackle those challenges. States that ratify this instrument commit to taking a series of measures against transnational organized crime, including the creation of domestic criminal offenses, the adoption of new and sweeping frameworks for extradition, mutual legal assistance and law enforcement cooperation, and the promotion of training and technical assistance for building or upgrading the necessary capacity of national authorities.

THE PROTOCOL TO PREVENT, SUPPRESS, AND PUNISH TRAFFICKING IN PERSONS

The Protocol to Prevent, Suppress and Punish Trafficking in Persons, especially Women and Children, adopted on 15 November 2000[36]. The Protocol is the first globally legally binding instrument with an agreed definition on trafficking in persons. The definition is intended to facilitate convergence in national approaches with regard to the establishment of domestic criminal offenses that would support efficient international cooperation in investigating and prosecuting trafficking in persons cases. The Protocol is also intended to protect and assist victims of trafficking in persons with full respect for their human rights.

THE PROTOCOL AGAINST THE SMUGGLING OF MIGRANTS BY LAND, SEA AND AIR

The Protocol Against the Smuggling of Migrants by Land, Sea and Air supplementing the Convention against Transnational Organized Crime, was adopted on 15 November 2000[37]. . The Protocol aims to protect the rights of migrants and reduce the power and influence of organized crimes that abuse migrants and emphasizes the need to provide migrants with humane treatment. It also aims to encourage cooperation between States to combat transnational organized crime, and smuggling, rather

[35] UNODC, 2000.
[36] UN, 2000c.
[37] UN, 2000d.

than focusing on an individual person who is being smuggled. States that ratify this treaty must ensure that migrant smuggling is criminalized in accordance with the Protocol's legal requirements.

2.6. INTERNATIONAL HUMANITARIAN LAW

International humanitarian law is a body of legal principles and rules that govern the conduct of armed conflicts and seek to protect individuals who are not or are no longer taking part in hostilities. The Geneva Convention of 1949 and their Additional Protocols define the basic rules of international humanitarian law, including the treatment of wounded and sick soldiers, the protection of prisoners of war, and the protection of civilians in times of war. The Additional Protocols of 1977 extended the scope of the conventions to cover non-international armed conflicts and to provide additional protections for civilians. These conventions are designed to ensure that all parties to a conflict respect basic human rights and humanitarian principles and provide protection and assistance to those who are most vulnerable.[38]

While international humanitarian law and international migration law are distinct legal frameworks, they intersect in situations involving migration during armed conflicts or other humanitarian crises. For instance, when armed conflicts occur, the principles of international humanitarian law apply to all individuals, including migrants, such as protection against direct targeting, ensuring the humane treatment of civilians, and providing assistance to those in need. Both frameworks are also grounded in the principles of humanity, protection of rights, and the need to prevent unnecessary suffering, which guide the treatment of migrants, refugees, and displaced persons during conflicts and migratory movements.

[38] ICRC, n.d.

2.7. REGIONAL AGREEMENTS ON MIGRATION

At the regional level, the African Union and various Regional Economic Communities (RECs) have adopted various agreements that relate to international migration, including the 1969 OAU Refugee Convention[39], the Protocol to the Treaty Establishing the African Economic Community Relating to the Free Movement of Persons, Right of Residence, and Right of Establishment (AU Free Movement Protocol)[40], the Intergovernmental Authority on Development (IGAD) Migration Action Plan[41], the Protocol on the Rights of Women in Africa[42], the African Charter on Human and Peoples' Rights[43], and the African Charter on the Rights and Welfare of the Child[44]. Several of these are highlighted below.

THE 1969 OAU CONVENTION FOR REFUGEES

The 1969 OAU Convention Governing the Specific Aspects of Refugee Problems in Africa, adopted on 10 September 1969, also known as the OAU Refugee Convention, is an international treaty that provides legal protection for refugees in Africa.[45] The OAU Refugee Convention broadens the definition of 'refugee' as outlined in the 1951 Refugee Convention, to include any person who is compelled to leave his or her place of habitual residence owing to external aggression, occupation, foreign domination or events seriously disturbing public order in either part or the whole of his country of origin or nationality. It was adopted by the OAU in 1969 and has since been ratified by 46 African countries, including those in East Africa. The Convention rights and benefits are informed by the non-penalization principle, which aims to ensure that refugees are not subjected to legal penalties solely for the fact of their presence on the territory of a host country. The Convention re-affirms the principle of non-refoulement and obliges Member States of the OAU undertake not to reject refugees at the frontier, return, or expel them to the country of origin. The convention also encourages African

[39] OAU, 1969.
[40] AU, 2018.
[41] IGAD, 2018.
[42] AU, 2003.
[43] OAU, 1981.
[44] OAU, 1990.
[45] Sharpe, 2013.

countries to share the burden of refugees, and to work together at the regional level to aid and protect refugees in a spirit of international cooperation.[46]

THE AFRICAN CHARTER ON HUMAN AND PEOPLES' RIGHTS

This charter, adopted by the African Union on 27 June 1981, , sets out the rights and freedoms to which all Africans are entitled. The charter includes provisions on the right to life, freedom from torture and other cruel, inhuman, or degrading treatment or punishment, and the right to freedom of movement and residence. All countries in East Africa are parties to the charter.

FREE MOVEMENT OF PERSONS PROTOCOL (AU)

The concept of free movement of persons in Africa predates the establishment of the Organization of African Unity (OAU) in 1963 and was a key factor in early nationalist movements across the continent, while being closely linked to the regional integration process. Between 1980 and 2000, the concept received additional support with the elaboration of the Lagos Plan of Action for the Economic Development of Africa, which envisaged an African common market and the free movement of labour within the continent.

Building on this momentum, the landmark Protocol to the Treaty Establishing the African Economic Community Relating to the Free Movement of Persons, Right of Residence, and Right of Establishment (AU Free Movement Protocol) was adopted on 29 January 2018. At the African Union level, the Protocol provides a legal framework to manage migration and mobility on the continent, and outlines measures to progressively achieve the free movement of persons and ensure the enjoyment of the right of residence and the right of establishment by their nationals within the African Economic Community. This progressive realization includes three main phases: phase one, during which state Parties implement the right of entry and abolition of visa requirements; phase two, during which state Parties implement the right of residence; and phase three, during which state Parties implement the right of establishment.[47] To date, however, the Protocol is not in force, and only four countries – Rwanda, Niger, São Tomé and Principle, and Mali - have ratified it.[48]

[46] UNHCR, 1992.
[47] ILO, 2018.
[48] EAC, 2023b.

The Protocol identifies four potential benefits of the free movement of persons on the continent: (i) increased intra-African trade and investment; (ii) improved education and training, and access to health care; (iii) facilitated labour mobility and enhanced utilization of Africa's human and material resources; and (iv) increased tourism, continental integration, and Pan-Africanism. It also identifies potential challenges to facilitating the potential benefits of the free movement of persons in Africa, including national security, public health concerns, and socio-economic disparities between countries, which have sometimes been invoked by States reluctant to implement the treaty as justification for delaying the process. However, the benefits presented by facilitating the free movement of persons on the continent far outweigh the potential risks, particularly if well-designed solutions are put in place. These include: improving civil registry systems, enhancing the integrity of identity documents and border management and law enforcement capabilities, strengthening bilateral and international cooperation and collaboration; expanding universal health coverage, collaborating across borders to prevent, detect, and respond to epidemics and other health threats; implementing well-regulated labor migration schemes, and introducing the rights of entry, establishment, and residence gradually in order to allay the concerns of local communities.[49]

2.8. EAC SPECIFIC AGREEMENTS ON MIGRATION

As with any region, Member States of the East African Community (EAC) are obligated to meet various aspects of international law that relate to international migration, including by respecting, protecting, and upholding the human rights of migrants. As an economic community, the EAC does not have specific regional treaties exclusively dedicated to migration.

However, countries in the East African Community (EAC) are part of various agreements that either explicitly or implicitly relate to migration, both at the international and regional levels. At the global level, this includes the Refugee Convention, the nine international human rights treaties, various International Organization (ILO) Conventions, including the Migration for Employment Convention (No. 97), and the Global Compact for Safe, Orderly, and Regular Migration. The Geneva Conventions

[49] IOM and AUC, 2018.

and their Additional Protocols have also been ratified by all countries in East Africa. Countries in the EAC also address migration-related issues through various definitions, agreements, and protocols, including the EAC Treaty, Common Market Protocol, and Free Movement of Persons Protocol, outlined below.

THE EAST AFRICAN COMMUNITY (EAC) TREATY

The Treaty for the Establishment of the East African Community was adopted on 30 November 1999[50]. The adoption of the Treaty codified the free movement of persons in Africa into a commitment that is legally binding on Member States. The Treaty then entered into force on 7 July 2000 following the conclusion of the process of its ratification and deposit of the Instruments of Ratification with the Secretary-General by all the three original Partner States. After the Treaty was adopted, the East African Community (EAC) came into being.

The EAC was established to widen and deepen economic, political, social, and cultural integration to improve the quality of life for the people of East Africa through increased competitiveness, value added production, trade, and investments. The Treaty includes the right of the cross-border movement of persons, the adoption of integrated border management, the removal of restrictions on movement of labour and services, and the right of establishment and residence, and calls for the harmonization of labour policies to enable the free movement of labour within the region[51]. In line with the African Union Agenda 2063, the EAC Treaty recognizes that human mobility is an important dimension of regional integration, and an enabling factor in accelerating economic development. The treaty includes provisions on human rights, democracy, and the rule of law, and establishes the East African Court of Justice to adjudicate disputes between member States. The Treaty has since been ratified by 48 out of 55 AU Member States and enshrines the Member States' agreement to conclude a protocol on the free movement of persons.[52]

[50] AU, 1999.
[51] UNECA, n.d.a.
[52] Ibid.

THE EAC COMMON MARKET PROTOCOL

The Protocol on the Establishment of the East African Community Common Market, or Common Market Protocol (EAC CMP), was adopted on 20 November 2009[53]. The Common Market Protocol guides the free movement of goods, people, labour, services, and capital from one Member State in the EAC region to another as well as the rights of establishment and residence without restrictions. The Protocol also calls for Member States to commit to guarantee the free movement of persons who are citizens of other States within their territories, while abiding by the principle of non-discrimination, equal treatment to nationals of other Partner States, transparency in matters concerning other Partner States, and sharing information for the smooth implementation of the Protocol.[54] The guarantee of free movement of persons within the region, however, is not an absolute right as it remains subject to limitations imposed by the host State on the grounds of public policy, public security, or public health. States are required to notify other Partner States in the EAC if they implement limitations on free movement.[55]

Of the various Regional Economic Commissions (RECs) in Africa, the EAC has put in place various legal and policy frameworks to facilitate the free movement of persons, goods, and services, and has achieved high levels of human mobility guided by its common market protocol.[56] The EAC has also attained significant reciprocal open visa policies between respective Member States. Among its Freedoms and Rights, the EAC Common Market Protocol also includes the Free Movement of Persons.

2.9 NATIONAL MIGRATION LAWS, POLICIES AND REGULATIONS

Countries establish distinct migration laws, policies, and regulations to manage the complex dynamics of population movement. These legal frameworks serve as the foundation for governing immigration, emigration, and residency within national borders amongst others. The unique socio-economic,

[53] EAC, 2009.
[54] n.d.b.
[55] Ibid.
[56] IOM, 2023b. Today, citizens of Kenya, Rwanda, and Uganda can move freely between the three countries using their EAC passports or national identity cards. These countries have also facilitated the right of establishment, the right of residence, and access to the labour market for their citizens. EAC Member States also have dedicated immigration lanes for EAC citizens at regional airports.

political, and cultural contexts of each nation shape these frameworks, reflecting a tailored approach to address specific challenges, protect national interests, and contribute to overall societal well-being.

Migration law refers to the legal framework that governs the movement of people across borders. Migration laws generally set the rules and procedures for entry, stay, and exit of non-citizens, as well as consequences for unlawful entry, overstay, or any other breach of entry. For example, the 1995 Tanzania Immigration Act, sets the terms, the authority, the powers of immigration officers, the definition of irregular migration, the conditions of entry and residence, the registration of immigrants, amongst others.[57] The Rwandan law 57/2018 on Immigration and Emigration[58] provides the conditions for entry, exit, stay and residence in the country, specifies the recognized travel documents, indicated provisions for the coordination and management of border posts, and includes penalties for related offences.

Migration policies, encompass the government's approach and objectives regarding migration, outlining the principles and goals guiding programs on migration management. Policies may include provisions for the protection of migrants' rights, including access to social services, non-discrimination, and protection from exploitation and abuse, and provide guidance for mainstreaming migration in development, labor, health policies amongst others. Countries may decide to put in place intergovernmental committees to elaborate and monitor the implementation of a migration policy in view of increasing coordination and effectiveness. For example, Burundi developed its National Migration Policy in 2015[59] through an inter-ministerial committee on migration chaired by the Ministry of Home Affairs and co-chaired by the Ministry of Public Security. The Burundian policy includes guidance on regular and irregular migration, border management, travel documents, diaspora, migration and development, security and regional integration, and gender aspects.

Regulations on migration are specific rules and requirements set by authorities to implement both migration law and policy, detailing procedures, criteria, and conditions for entry, residency, and other aspects of migration. In Kenya, the Citizenship and Immigration Regulations[60] sets out the legal

[57] UNHCR, n.d.
[58] Government of Rwanda, 2018.
[59] IOM, 2021a.
[60] Government of Kenya, 2011.

framework for migration and provides details on citizenship, travel documents, immigration control, foreign nationals management, amongst others.

While each country in the EAC has its own governing national migration laws and regulations, there are, however, some common themes and provisions that are reflected in these legal frameworks. Examples include those relating to: (a) Immigration and Work Permit Requirements; (b) Asylum and Refugee Protection; (c) Citizenship and Nationality; (d) Border Control and Security; (e) Labour Migration; and (f) Family Reunification.

2.9. INSTITUTIONAL FRAMEWORK FOR THE OSBP

The implementation of OSBPs in the EAC are guided by legal and institutional frameworks, including the EAC OSBP Act, the OSBP Procedures Manual, and Bilateral Agreements[61], as elaborated below. The 3rd Edition of the One-Stop Border Post Sourcebook (2022), elaborated by the African Union Development Agency and the Japan International Cooperation Agency, also provides a useful reference tool for all aspects related to implement and operating a OSBP.

THE EAC OSBP ACT

The EAC OSBP Act was designed to provide a common legal framework within which EAC Partner States could proceed with the establishment and implementation of OSBPs. It is anchored in the EAC Treat, the protocol on the Establishment of the EAC Customs Union, the Protocol on the Establishment of the EAC Common Market, and the EAC Customs Management Act. In general, the EAC OSBP Act supersedes bilateral agreements, although in some cases it may still be necessary or desirable to design bilateral agreements that can cover specific circumstances unique to border crossings. All Heads of State in the EAC agreed to the EAC OSBP Act in 2016. To support the implementation of the EAC OSBP Act, the EAC also established the OSBP Regulations in 2017, and formulated regional procedures, which were adopted in 2018.

[61] EALA, 2016.

THE EAC OSBP PROCEDURES MANUAL

The EAC OSBP Procedures Manual, elaborated in 2018, provides harmonized step-by-step guidelines for border officials on the execution of controls at an OSBP, and is used by all agencies operating in OSBPs in EAC. The manual also includes criteria that may be considered while formulating a business continuity plan in case of a disaster, including a risk assessment of the perceived nature of the threat, roles and responsibilities of different agencies during emergencies, and coordination and information sharing mechanisms. Some Partner States also apply almost the same procedures at their OSBP with non-EAC countries, such as between Kenya and Ethiopia. To support the effective application of the manual, training and sensitization for border officials and other relevant stakeholders have been implemented.

BILATERAL AGREEMENTS

Creating a bilateral agreement is recommended where two neighboring countries are involved, and in cases where the focus is on establishing an OSBP between them. This entails the negotiation of a bilateral agreement in which the guidelines on establishing an OSBP are spelled out. In cases where there is no existing legal framework to establish an OSBP, countries that have decided to establish an OSBP should enter into a formal agreement, which may take the form of a bilateral agreement. The EAC OSBP Act and Bilateral Agreements specify the institutional framework for a specific OSBP, and provide for Joint Management Committees and other subcommittees from Ministerial to Technical levels, which can support the operationalization of an OSBP.

In the EAC, some countries have entered into bilateral agreements with other countries to facilitate the movement of people between them. For example, Tanzania has signed bilateral agreements with several countries, including Kenya, Rwanda, and Uganda, to facilitate the free movement of people and goods.

2.10 SOFT LAW INSTRUMENTS AND OTHER GUIDANCE

Countries in the EAC region have also engaged in various soft law instruments and guidance materials that address migration-related issues, which are not legally binding. These are outlined below.

THE INTERNATIONAL LABOUR ORGANIZATION (ILO) MIGRATION FOR EMPLOYMENT CONVENTION

The convention, adopted on 1 July 1949[62], aims to protect the rights of migrant workers and to promote fair and equitable conditions of employment. Among others the following key provisions of the convention that are worth noting relate to the right to: equal treatment with nationals of the State of employment in respect of working conditions, remuneration, social security, and access to public services; receive information and advice on their rights and obligations under the law; receive adequate housing and to enjoy the cultural life of the State of employment; receive medical care and to have access to education and vocational training; have their identity documents and personal property protected; have access to legal assistance and to appeal against any decision affecting their rights or status. As of March 2023, the convention has been ratified by 52 countries, including several in East Africa such as Kenya, Tanzania, and Uganda.

DECLARATION ON THE HUMAN RIGHTS OF INDIVIDUALS WHO ARE NOT NATIONALS OF THE COUNTRY IN WHICH THEY LIVE

The Declaration on the Human Rights of Individuals Who Are Not Nationals of the Country in which They Live[63], adopted on 13 December 1985, outlines principles and rights related to the protection of the human rights of individuals who are not nationals of the country in which they reside, including migrants.

THE ILO DECLARATION OF FUNDAMENTAL PRINCIPLES AND RIGHTS AT WORK

The ILO Declaration of Fundamental Principles and Rights at Work[64], adopted on 18 June 1998, are universal to all people in at States, regardless of their status. The Declaration also specifies that the

[62] ILO, 1949.
[63] United Nations, 1985.
[64] ILO, 1998.

ILO should give special attention to the problems of persons with special social needs, particularly the unemployed and migrant workers.

DECLARATION ON THE RIGHTS OF PERSONS BELONGING TO NATIONAL OR ETHNIC, RELIGIOUS OR LINGUISTIC MINORITIES

The Declaration, adopted on 18 December 1992[65], focuses on protecting the rights of individuals who belong to minority groups within a particular country. The declaration's principles also have implications for migrants who may also belong to such minority groups.

DURBAN DECLARATION AND PROGRAMME OF ACTION

The Durban Declaration (DDPA), adopted on 8 September 2001[66], addresses a wide range of issues related to racism, racial discrimination, and intolerance, and includes references to migrants and their rights. It specifically acknowledges the importance of respecting the human rights of migrants and refugees, including their right to life, liberty, security, and protection from violence and abuse. The Outcome Document of the Durban Review Conference, adopted on 24 April 2009, represents consensus made me participating states and serves as a guideline for action.

RECOMMENDED PRINCIPLES AND GUIDELINES ON HUMAN RIGHTS AND HUMAN TRAFFICKING

These recommended principles were presented to the Economic and Social Council as an addendum to the report of the United Nations High Commissioner for Human Rights and adopted on 20 December 2002[67]. These recommended principles and guidelines provide guidance on how to address human trafficking while respecting and protecting the human rights of all individuals involved, including migrants.

PACT ON SECURITY, STABILITY, AND DEVELOPMENT IN THE GREAT LAKES REGION

The Pact on Security, Stability, and Development in the Great Lakes Region[68], was adopted on 15 December 2006, and signed by 11 countries in the Great Lakes region, including Burundi, the

[65] United Nations, 1992.
[66] OHCHR, 2001.
[67] United Nations, 2002.
[68] ICGLR, 2006.

Democratic Republic of Congo, Kenya, Rwanda, Tanzania, and Uganda, aims to promote peace, security, and development in the region. The pact includes provisions on human rights, democracy, and good governance, and commits the signatories to respect international humanitarian law and protect civilians in times of armed conflict.

GLOBAL COMPACT FOR SAFE, ORDERLY, AND REGULAR MIGRATION (GCM)

The Global Compact for Safe, Orderly, and Regular Migration, also called the Global Compact on Migration (GCM), was adopted by Heads of State and Government on 11 December 2018. It is the first inter-governmentally negotiated agreement that covers all dimensions of international migration in a holistic and comprehensive manner. The GCM is a non-binding document that aims to improve international cooperation on migration, while setting out a framework for addressing the challenges and opportunities of migration.

Many of the GCM's objectives reflect the priorities of RECs, such as the objective of achieving regular pathways, strengthening regional cooperation on migration, and supporting labour migration. The African Union also adopted the African Common Position on the Global Compact for Migration[69] that aims to achieve better migration outcomes by improving migration governance mechanisms and facilitating safe and orderly migration in the continent.

AU MIGRATION POLICY FRAMEWORK FOR AFRICA (2018-2030)

In 2018, the African Union adopted a Revised Migration Policy Framework for Africa and Plan of Action (2018-2030)[70], which aims to enhance regional migration governance, and support the development of a common, evidence-driven, cross-sectoral, regional migration and health policy framework. The framework builds upon the AU Migration Policy Framework (MPFA), which was adopted in 2006. The Framework recommends that Member States ensure migrants have access to health services and social services regardless of their migration status, and that States adopt a gender-sensitive and non-discriminatory approach when promoting equal opportunities and protection to all migrants.[71]

[69] AU, 2006b.
[70] AU, 2018b.
[71] IOM, EAC and IGAD, 2022.

Table 3: Summary of International Laws, Conventions, Agreements, and Guidance Material Relevant to Migration in EAC

International Human Rights Instruments	• International Convention on Elimination of All Forms of Racial Discrimination (21 December 1965) • International Covenant on Economic, Social and Cultural Rights (16 December 1966) • International Covenant on Civil and Political Rights (16 December 1966) • Convention on the Elimination of All Forms of Discrimination against Women (18 December 1979) • Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment (10 December 1984) • Convention on the Rights of the Child (20 November 1989) • International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (18 December 1990) • Convention on the Rights of Persons with Disabilities (13 December 2006) • International Convention for the Protection of All Persons from Enforced Disappearance (20 December 2006)
International Refugee Law	• 1951 Convention Relating to the Status of Refugees (28 July 1951) • 1967 Protocol Relating to the Status of Refugees (31 January 1967)
International Criminal Law	• Convention against Transnational Organized Crime (15 November 2000). • Protocol to Prevent, Suppress and Punish Trafficking in Persons, especially Women and Children (15 November 2000) • Protocol against the Smuggling of Migrants by Land, Sea, and Air (15 November 2000)
International Humanitarian Law	• Geneva Conventions for the Protection of War Victims (Geneva Conventions of 1949) • Protocols Additional to the Geneva Conventions of 1949 (Additional Protocols of 1977)

Regional Agreements of Relevance to Migration	• 1969 OAU Convention Governing the Specific Aspects of Refugee Problems in Africa (10 September 1969) • The African Charter on Human and Peoples' Rights (27 June 1981). • The Protocol to the Treaty Establishing the African Economic Community Relating to the Free Movement of Persons, Right of Residence, and Right of Establishment (29 January 2018)
EAC Agreements of Relevance to Migration	• Treaty for the Establishment of the East African Community (30 November 1999) • The Protocol on the Establishment of the East African Community Common Market, or Common Market Protocol (20 November 2009) • EAC OSBP Act (23 April 2013)
Soft Law Instruments and Guidance	• International Labour Organization (ILO) Migration for Employment Convention (1 July 1949) • Declaration on the Human Rights of Individuals Who Are Not Nationals of the Country in Which They Live (13 December 1985) • The ILO Declaration of Fundamental Principles and Rights at Work (18 June 1998) • Declaration on the Rights of Persons Belonging to National or Ethnic, Religious, or Linguistic Minorities (18 December 1992) • Durban Declaration and Programme of Action (8 September 2001) & Outcome Document of the Durban Review Conference (24 April 2009) • Recommended Principles and Guidelines on Human Rights and Human Trafficking (20 December 200) • Pact on Security, Stability, and Development in the Great Lakes Region (15 December 2006) • Global Compact for Safe, Orderly, and Regular Migration (GCM) (11 December 2018) • AU Migration Policy Framework for Africa (2018)

TOPIC 3: TRAVEL DOCUMENTS

A travel document is a distinct document issued by a competent government authority or international entity pursuant to international agreements to enable individuals to clear border control procedures. Travel documents usually assure other governments that the bearer may return to the issuing country and are often issued in booklet form to allow other governments to place visas as well as entry and exit stamps on them.[72]

3.1 CATEGORIES OF TRAVEL DOCUMENTS

Travel documents are valid for international travel and can be classified into two broad categories; machine readable and non-machine-readable travel documents.[73]

MACHINE READABLE TRAVEL DOCUMENTS (MRTD)

Machine-readable travel documents (MRTD) include machine-readable passports (MRP), which are government-issued travel documents that include data that can be read by a computer. MRPs contain data on the identity page encoded in optical character recognition format. Many countries started to issue machine-readable travel documents in the 1980s.

Most passports worldwide are MRPs. They are standardized by the *ICAO Document 9303* (endorsed by the International Organization for Standardization and the International Electro technical Commission as ISO/IEC 7501-1) and have a special *machine-readable zone* (*MRZ*), which provides a set of essential data elements in a format that is standardized for each type of MRTF that can be used by all receiving States regardless of their national scripts or customs. The data in the MRC is also formatted so that it can be readable by machines worldwide, and is usually found at the bottom of the identity page at the beginning of the passport. The ICAO 9303 describes three types of documents corresponding to the ISO/IEC 7810 sizes:

i. "Type 3" is typical of passport booklets. The MRZ consists of 2 lines × 44 characters.
ii. "Type 2" is relatively rare with 2 lines × 36 characters.
iii. "Type 1" is of a credit card-size with 3 lines × 30 characters.

[72] ICAO, 2021.
[73] Ibid.

This fixed format enables the specification of document type, name, document number, nationality, date of birth, sex, and document expiration date, which are all required fields on a passport. There is also room for optional, often country-dependent, supplementary information. Similarly, there are two sizes of similarly defined machine-readable visas.

Computers with a camera and suitable software can read information on machine-readable passports. This enables faster processing of arriving passengers by immigration officials, and greater accuracy than manually read passports, as well as faster data entry, more data that can be read, and improved data matching against immigration databases and watch lists.[74]

Apart from optically readable information, many passports contain a radio frequency identification (RFID) chip which enables computers to read a greater amount of information, such as a photo of the passport-bearer. These passports are called biometric passports and are also described by ICAO 9303.

The ICAO document 9303 also describes specifications that are common to all Machine-Readable Travel Documents (MRTD). Dimensions of the effective reading zone (ERZ) are standardized at 17.0 mm (0.67 in) in height with a margin of 3 mm at the document edges and 3.2 mm at the edge against the part that is visually readable. This enables use of a single machine reader.

In MRTDs, only characters A–Z (upper case), numbers between 0–9, and angle brackets are allowed. The typeface that must be used is OCR-B.

NON-READABLE TRAVEL DOCUMENTS

There are also travel documents which do not use modern technology and are not machine readable. FVery few States use this kind of travel document.

There are various travel documents authorized for use in the EAC as discussed below:

CATEGORIES OF PASSPORTS ISSUED IN EAC

A passport refers to a document issued by the competent authority of a State, that is valid for international travel and meets specifications and standards for the purpose of controlling movement in and of at national borders. The passport also identifies the holder of the passport as a national of

[74] ICAO, n.d.

the issuing State and constitutes evidence of the holder's right to return to that State[75]. EAC States' governments issue various types of passports and other travel documents as provided for by the governing laws and regulations. East Africans may use valid national passports to travel within the region, or use the East African Passport, which was designed to ease border crossings for East Africans. Other travel documents that can be used to travel in East Africa include passes, national ID cards, and visas, which are elaborated on below.[76]

ORDINARY PASSPORTS

An ordinary passport is issued to citizens of a EAC partner States for the purpose of travelling outside their respective countries. This passport may be used to travel to all countries and is valid for two-to-ten years after being issued.

Requirements for applying for an Ordinary Passport:

i. Birth certificate or an affidavit of birth
ii. Birth certificate or affidavit of the birth of a parent, or certificate of naturalization
iii. National ID Card (if available)
iv. Proof of applicant's activities or justification for the trip
v. Additional requirements that may be determined by the relevant authorities at different points in time

While there are some requirements that apply across the EAC, there are also specific requirements that can apply for distinct countries. Details of the various requirements and application processes for each country in the EAC are included in appendix i.

SERVICE PASSPORTS

A service passport is issued to citizens of EAC partner States who are entitled to have these passports as specified by the law. These are mostly issued to Government officials.

Requirements for Obtaining a Service Passport

[75] IOM, n.d.a.
[76] EAC, n.d.c.

i. Birth certificate or an affidavit of birth
ii. Birth certificate or affidavit of the birth of a parent, or certificate of naturalisation
iii. National ID Card (if available)
iv. Proof of applicant's activities or justification for the trip

DIPLOMATIC PASSPORTS

A Diplomatic passport is issued to citizens of EAC partner States who are entitled to have these passports as specified by the law. Diplomatic passports are usually issued to diplomats and other citizens whose work represents EAC partner States in the world.

Requirements for Obtaining a Diplomatic Passport:

i. Birth certificate or an affidavit of birth
ii. Birth certificate or affidavit of birth of a parent, or certificate of naturalisation
iii. National ID Card (if any)
iv. Proof of applicant's activities or justification for the trip
v. An introduction letter from the Ministry of Foreign Affairs and East African Cooperation (or any relevant Ministry)

EMERGENCY TRAVEL DOCUMENTS/LAISSEZ- PASSER

Emergency travel documents are issued to citizens of a country who are travelling on an emergency journey, and/or who are stranded abroad and unable to obtain a passport. In the EAC, certificates of identity/inter-state Passes, issued by local immigration authorities to citizens who cannot be readily issued with a passport in emergency situations, can be used to travel across the EAC in place of a passport.[77]

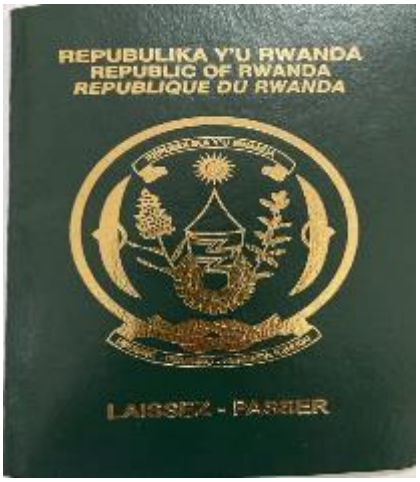


Figure 1: Example of a Laissez-Passez for the Republic of Rwanda

Requirements for Obtaining an Emergency Travel Document

i. Applicant's birth certificate or an affidavit of birth
ii. Birth Certificate or affidavit of birth of a parent or certificate of naturalisation;

[77] EAC, n.d.c.

iii. National ID Card (if available)

iv. Two passport size photos

v. An introductory letter from the Ward Executive Officer or another related office

vi. A copy of a two-year resident permit or visa for foreign nationals

CEPGL LAISSEZ-PASSER

A CEPGL laissez-passer refers to a card issued by the Economic Community of the Great Lakes Countries (CEPGL) which facilitates cross-border movement and trade between Member States. This document is applicable in three partner States of the EAC: Burundi, Rwanda and DRC.

Requirements for Obtaining a CEPGL Laissez-passer

i. Birth certificate or an affidavit of birth

ii. Birth Certificate or affidavit of birth of a parent, or certificate of naturalisation

iii. National ID Card (if available)

iv. An introduction letter from Ward Executive Officer or another related office

v. A copy of a two-year resident permit or visa for foreign nationals

E-ID CARD

This document is issued to any citizen in a EAC partner States or a foreign national with a certificate of naturalisation.

Requirements for Obtaining an e-ID card

i. Applicant's birth certificate or an affidavit of birth

ii. Birth Certificate or affidavit of birth of a parent, or certificate of naturalisation

UNITED NATIONS LAISSEZ-PASSER

This document is issued to any UN staff member.

Requirements for Obtaining a United Nations Laissez-Passer

i. A letter from relevant Director or related office

ii. A copy of a Refugee Identity Card

GENEVA CONVENTION TRAVEL DOCUMENTS

This document is issued to any Refugee granted asylum in EAC partner States.

Requirements for Obtaining Geneva Convention Travel Document

I. A copy of a Refugee Identity Card
II. A letter from the Director of Refugee Department or Related Office

CERTIFICATE OF IDENTITY

This document is issued to a person who is not a citizen of a EAC Partner State and cannot obtain a passport from his country of origin or does not have citizenship of any country for the purpose of travelling outside the EAC.

Requirements for Obtaining a Certificate of Identity:

i. Police loss report in case the applicant lost their passport and there is no Embassy of their country of origin in any EAC partner State
ii. A written account detailing the circumstances in which the passport was lost
iii. For applicants born in EAC partner States, evidence of their place of birth must be submitted

3.2 IDENTIFICATION OF PASSPORTS AND TRAVEL DOCUMENTS

Authenticating travel documents involves a proper legal process, ensuring documents against fraud, and adhering to procedures outlined by the governing laws and regulations of EAC Member States.

To obtain a travel document, applicants must follow a specific application process, including by completing forms, documentary evidence, submission of photographs, and in some cases secondary biometric data.

The information and documentation provided will then enable the relevant authorities to issue the travel document to the applicant. During and after the issuance process, the information the applicant submits must be protected. Adhering to privacy concerns and data protection are essential in this regard.

Immigration officers and other OSBP agency staff must be trained in both the characteristics/security features of genuine documents and in how to identify false documents to support a smooth migration management process. Once immigration and OSBP staff are trained, the verification of travel documents can proceed.

3.3 ISSUING AND VERIFYING TRAVEL DOCUMENTS

ORGANIZATIONAL STRUCTURE, INTERNAL SECURITY AND GENERAL SECURITY PRACTICES

The organizational structure of the Travel Document Issuing Authority (TDIA) can be either centralized or decentralized, as long as the security of the travel documents issued are secure. All processed applications must also observe ICAO 9303 as recommended to the TDIA.

APPLICATION PROCESSES

The application process must be uniformly applied to the general public, regardless of the organizational structure of the TDIA, i.e. centralized/decentralized, and the specific information and documentation be submitted by the applicant.

ENTITLEMENT PROCESSES

In most countries there are three elements that a government needs to establish before issuing a travel document: (i) evidence of the applicant's identity, to determine whether the identity presented is real, and the applicant is in fact the claimed individual; (ii) proof of citizenship, and (iii) verification of whether the applicant is subject to any travel restrictions, for example by having a criminal record, history of lost and stolen travel documents, or demonstrated failure to pay child support. Several tools and techniques are used to help determine entitlement to travel documents.

TREATMENT OF MATERIALS AND BLANK BOOKS

Materials and blank travel documents include blank booklets, identification and observation labels, and security laminates. The protection and secure management of blank travel documents and raw material is critical to the integrity of the production and issuance of materials and blank travel documents

because if they are lost or stolen and not secured, they can be used to create counterfeit personalized documents.

PERSONALIZATION AND DELIVERY

The personalization of a travel document refers to the variable data added to the blank booklet, which in a passport includes the applicant's personal data to be printed on the data page, and information to be encoded in the chip. Personalization must also take place in a highly secure area where only select individuals have access. After a document is personalized, it can be released to the applicant through various methods, including in-person pick-up (or release to a third party), secure mail, delivery, or courier services.

Of the various methods, it is suggested that an applicant pick up their document in-person, which offers the best chance to confirm their identify. In-person appearance allows for the government official to confirm that the person is still alive, to compare the photograph in the document with the person, provides the opportunity for the person to answer questions directed towards them, and allows for the government official to observe and judge the personal comportment of the applicant against their documentation. Additional techniques may also be used to ensure that the person collecting the travel document is the rightful holder, such as asking them show additional ID that includes a photo, asking them personal questions, such as their mother's maiden name, and the use of biometrics. If in-person pickup for a document is used, a pick-up receipt can be provided to the applicant. Pick-up of travel documents, whether in-person or through another method, must also be indicated in the TDIA database.

If an applicant is not able to collect their travel document in-person and a mail service is used, a reliable mail service is necessary. In all cases, a signature of receipt by the applicant or someone living at their same address is necessary.[78]

[78] ICAO, 2016.

DOCUMENT SECURITY

To effectively perform its mandate, the TDIA processes and stores vast quantities of an applicant's personal information. This information needs to be rigorously safeguarded against criminals who may seek to access and use it for illegal purposes such as identity theft, financial gain, or other types of identity fraud. These types of fraud are increasingly prevalent.

FACILITY SECURITY AND INFORMATION TECHNOLOGY SECURITY

It is recommended that TDIA take appropriate actions to provide secured facilities to minimize risks, security threats, and vulnerabilities to its issuance system. Risk management is the process by which resources are planned, organized, directed, and controlled to ensure the risk of operating a system remains within acceptable bounds with minimal costs by TDIA.

LOST AND STOLEN TRAVEL DOCUMENTS

If the applicant has a history of lost or stolen travel documents, they may be required to apply in person. Additional requirements might also be required before the new travel document can be issued.

OVERSEAS ISSUANCE

Issuing authorities and relevant Governments need to establish issuance offices abroad, particularly Embassies, to facilitate the application of travel documents. In addition, having the option to either mail an application or apply in person at a partner's offices may enable services to be more accessible to members of the relevant State.

NATIONAL AND INTERNATIONAL STAKEHOLDERS

The issuance of travel documents by authorities must comply with national and international laws to ensure the standard and security of the travel documents concerned. National stakeholders, for example, include entities such as the Police, National Identity Card authorities, and National Birth Registration authorities, while international stakeholders include ICAO, which provides recommendations through updated protocols.[79]

3.4 TRAVEL DOCUMENT SECURITY FEATURES

Travel document security features refers to the physical features, techniques, and characteristics of travel documents that aim to strengthen their security and improve their resistance to attack and misuse. With widespread access to low-cost technologies including high quality scanning, colour copying, image processing, and photo quality printing, the capacity of individuals to produce convincing counterfeit travel documents and deceptive alterations has increased exponentially.

The following are physical threats to travel documents:

i. Counterfeiting a complete passport or travel document
ii. Substituting a photo
iii. Deleting/altering text in the visual or machine-readable zone of the MRTD data page
iv. Constructing a fraudulent document, or parts thereof, using materials from legitimate documents
v. Removing and substituting entire page(s) or visas
vi. Deleting entries on visa pages and the observations page
vii. Conducting theft and personalization of genuine blank document; and
viii. Tampering the chip either physically or electronically where it is present.

An overview of the main developments in MRTD technology and security concepts is provided in the ICAO travel document 9303.[80]

3.5 DEFINITION AND TYPE OF VISAS

A visa is permission granted to a foreign visitor who intends to enter EAC partner States for the purpose of tourism, leisure, holiday, business, health treatment, attending a conference or other related activities as recognized by the laws of EAC partner States.

The following are types of visas that are common within the EAC:

[80] ICAO, n.d.

ORDINARY VISA (SINGLE ENTRY VISA)

This visa is issued to a visitor for single entry into a country for anda period not exceeding three months for the purpose of activities that are legally recognized by the governing laws of EAC partner States.

MULTIPLE ENTRY VISA

This visa is issued to persons whose business or circumstances require frequent visits to EAC partner States for a period of time not exceeding twelve months. Multiple entry visas are also issued to citizens of other countries who have bilateral agreements with EAC individual partner States.

GRATIS VISA

This visa is issued for a single entry or multiple entries to a holder of a diplomatic, services, or official passport, or a holder of a travel document provided by a recognized International Organization who is on official duty, as well as their dependents. It can also be issued to a holder of an ordinary passport or travel document as directed by the governing authority.

TRANSIT VISA

This visa is issued to a person for the purpose of transiting through any EAC partner State to another destination outside the country for a period not exceeding seven days or more, depending on the governing laws of the EAC individual partner State.

BUSINESS VISA

This visa is issued once to foreigners to allow them to enter a EAC partner State for the following reasons:

i. To conduct special assignments such as fixing/repairing machines or to run short-term trainings
ii. To conduct professional roles such as auditing accounts
iii. To conduct lawful business according to the laws of the country

STUDENT VISA

This visa is issued to foreigners who wish to come to EAC partner States to study. Applicants must have an admission from an accredited University, college, or approved institution in the relevant EAC partner State.

ESTABLISHMENT VISA OF TWO YEARS

An establishment visa of two years is issued once to foreigners to allow them to enter and establish themselves for two years or more in their intended EAC partner States. An establishment visa is issued to enable foreigners to enable them to:

i. Be employed and have a contract for more than two years
ii. Obtain a valid entry visa
iii. Obtain a valid passport

PERMANENT RESIDENT VISA

A permanent resident visa is issued once to foreigners to allow them to stay in the country for 99 years. This visa is granted to a foreign national to enable them to:

i. Make a large investment in the host country
ii. Marry in the host country
iii. Obtain a valid passport
iv. Obtain a valid establishment visa

REFERRAL VISA

There are some countries whose nationals may not be eligible to receive a visa on arrival. Applicants from these countries require special clearance from the immigration authority from the relevant EAC partner States. Countries which fall under this category are referred to as being in the 'Referral Visa Category'.

3.6 DEFINITION AND TYPES OF PASSES

Passes grant permission to its holders to enter and reside in EAC member States and are issued to those people who do not need a visa to enter EAC Countries, such as citizens from EAC partner States citizens, or those from the Southern African Development Community (SADC) and the Common Market for Eastern and South Africa (COMESA).

In lieu of a passport, a certificate of identity or inter-state pass can also be issued by local immigration authorities to citizens who cannot be readily issued a passport during an emergency situation.[81]

The various types of passes are outlined below:

EXEMPTION CERTIFICATE

This type of pass is issued to:

i. Diplomats
ii. Spouses and dependents of Diplomats
iii. Foreign expatriates involved in government projects
iv. Students from the EAC Member States and other students recognized by the governing law of the EAC partner State

MIGRANT PASS

This pass is issued to persons of African descent from bordering countries to the EAC, or any other persons who migrated to an EAC country before 1972 and continues to reside there without having a passport or identification from another country.

STUDENT PASS

This is issued to the children of persons legally residing in an EAC country who are either below the age of majority, or above the age of majority but have not been endorsed by their parents' residence permits to study in an approved training establishment including kindergarten, primary, secondary schools, and higher learning institutions.

[81] EAC, n.d.c.

DEPENDENT PASS

This is issued to dependent persons who reside in an EAC member State and whose life depends on a person who possesses a residence permit. Sometimes this document can be endorsed by the residence permit of the residence permit bearer. Examples of individuals who have dependent passes include spouses, children, and close relatives.

VISITORS PASS

This pass is issued to a foreign national who is a prospective visitor who can demonstrate to an Immigration Officer that they wish to visit a Country in the EAC territory for the purpose of:

i. Spending a holiday
ii. Travelling or appearing before a court of law
iii. Obtaining medical treatment
iv. Or any other sufficient reason[82]

BUSINESS PASS

This pass is issued to persons from countries that do not require a visa to enter any of the EAC Member States. The business pass allows a person in possession of it to conduct temporary special assignments or short-term professional roles, such as auditing, machinery repair, conducting a feasibility study, establishing business contacts, or other investment-related arrangements, especially during the start-up phase if an investment project.

RE-ENTRY PASS

This pass is issued to any foreign national who resides in an EAC member State to allow them to re-enter the country following a journey outside the EAC. It is issued for a period o time that does not exceed the validity of the permit, pass, or other valid immigration status document issued to the foreign national. A re-entry pass may also be changed into a passport when the holder enjoys exceptional dual nationality status (below 18 years) as provided by the EAC member State, in accordance with their citizenship laws.

[82] For further information on other sufficient reasons that one may be issued a visitor pass, please refer to specific clauses as specified in relevant national and regional legislation.

SPECIAL PASS

This Pass is issued to any foreign national living in or entering an EAC member State to enable them to apply for and obtain a residence permit or pass, or to complete an immigration formality.

A special pass may also be used to afford a foreign national the opportunity to regulate their immigration status after their immigration status has expired.

IN TRANSIT PASS/INTER-STATE PASS

This pass is issued to a foreign national for the purpose of passing through one of the EAC Member States to a destination outside that particular State within the EAC region. Nationals of Uganda, Kenya, and Rwanda are free to move between these countries with only an ID-card (national ID) in place of their passports, while residents require a work permit to be issued the Inter-State Pass.

LANDING PASS

This pass is issued to any foreign national who is a crew member of a ship or vessel who has arrived in one of the EAC Member States by sea or lake in the course of an uninterrupted journey through EAC territory, and who desires to disembark from the ship or vessel for the purpose of sight-seeing or another valid reason during the period that the ship or vessel is scheduled to be in the port.

3.7 PROCEDURES OF APPLYING VISAS AND PASSES

Procedures are guided by the distinct laws and regulations of the EAC member States that issue visa and pass documents. However, requirements between EAC member States for visas and passes are similar.

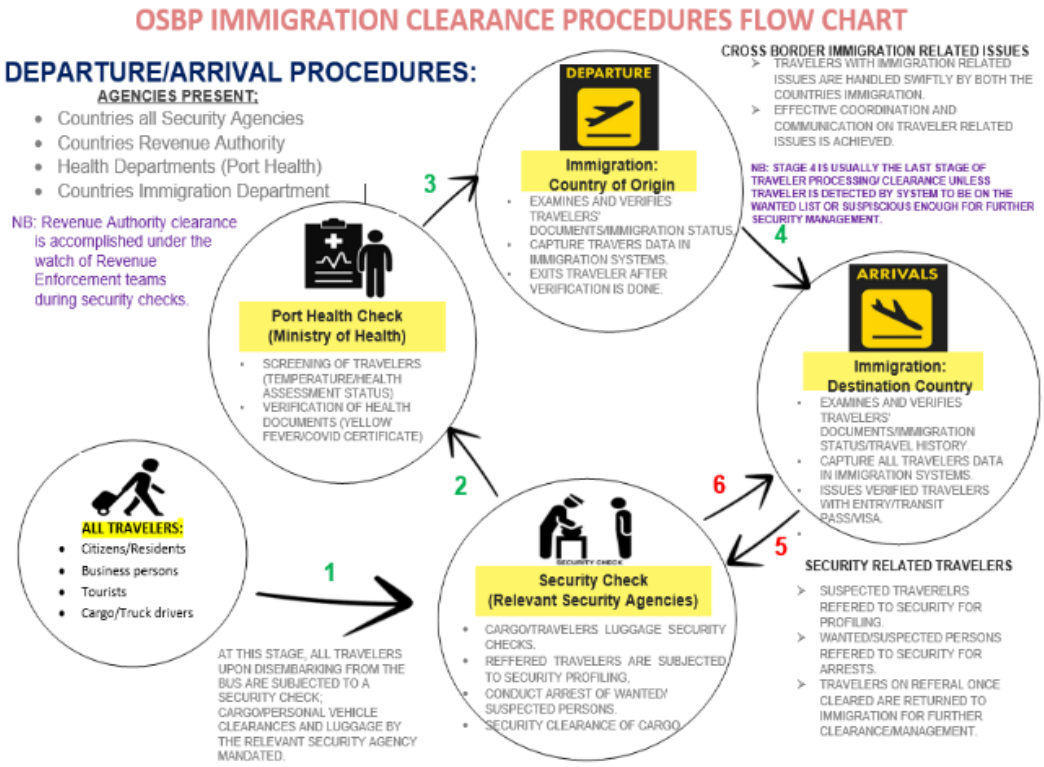
Requirement for visas and passes

i. Passport or copy of valid passport
ii. Cover letter from a respected institution
iii. Previous copy of visa or pass (for the purpose of renewal)
iv. Relevant fee depending on the type of visa or pass requested

TOPIC 4: MIGRATION CLEARANCE PROCEDURES

Migration clearance procedures are used to ensure smooth processing of passengers from the time they disembark from their vessels, to when a cross-examination takes place at the border of a new country, to the point when passengers are successfully granted entry into or exit from a country, as illustrated in the figure below. At the OSBP, which eliminates the need for travellers to stop twice while undertaking border crossing formalities, it is important to sensitize both travellers and border agencies about these procedures to facilitate a smooth clearance process. This topic covers the entire process.

Figure 2: Summary of Migration Clearance Procedures[83]



[83] Uganda Immigration Border Procedures Manual

4.1 COMPLIANCE WITH ENTRY/EXIT REQUIREMENTS

The following procedures must be followed to ensure compliance across the board:

RECEIPT OF PASSENGERS (UPON ARRIVAL)

Receipt of passengers upon arrival entails the process undertaken by migration officers when receiving passengers and walk-ins. Passengers can arrive via a number of different vessels, including buses, aircraft, personal cars, and trailers, among others.

Procedure:

i. The vessel carrying passengers enters the migration control area and the passengers disembark

ii. The migration officer verifies that the vessel has no passengers/stowaways

iii. The officer confirms that the passengers have gone through security and port health checks

iv. The passengers are directed to the immigration desk either physically or via signs

TRAVEL DOCUMENT IDENTIFICATION

It is vital to check each traveller's documentation to ensure their legitimacy and authenticity.

Procedure:

i. The migration officer receives the passenger's travel document

ii. The officer examines the authenticity and validity of the travel document by looking at critical aspects including the authority that issued the document, and the expiration date, among other aspects

iii. The officer confirms that endorsements received from port health officials are valid

Failure to meet the required travel requirements can lead to the passenger being denied exit or entry.

TRAVELLER PROFILING

Traveller profiling refers to the practice of analyzing individuals who are traveling based on various factors to assess potential risks. It involves cross-examining a passenger to establish their true intention for entering a territory.

Procedure:

i. The migration officer asks pertinent questions regarding the passenger information on travel documents

ii. The migration officer asks the purpose and duration of stay, and questions the traveller on the route they took, whether they are in possession of any currency, and which countries they visited beforehand

iii. The migration officer checks the traveller's itinerary and asks the passenger about the intention of their visit

If the traveller's responses are inconsistent, they will either be advised to return to their country of origin, or their case will be forwarded to security for further management.

ITINERARY CHECK

Itinerary checks involve verification of the manifest. The objective is to check that the travellers are manifested and that the details of presented documents align with those under the manifest.

Procedure:

i. The passenger presents the travel document and the migration officer compares it with the manifest to ensure that the details align, including the name, travel document number, destination, and visa requirement, if required

ii. Individuals arriving with private vessels present their customs clearance documents while their travel documents are checked

iii. Walk-ins are treated as pedestrians if their documentation is valid

If the physical number of passengers does not align with the manifest, an explanation must be provided by the master of the means of conveyance. In these instances, the migration officer must explain the reversal process to the passenger when necessary.

DATA REGISTRATION

Data registration refers to inputting the details of a traveller into a migration system, including fingerprints, photos, and scanning documents. The officer in charge must ensure that the details of the traveller are correctly captured in the border management information system (BMIS) currently in use.

Procedure:

i. The migration officer scans the travel documents

ii. The migration officer inputs details into the system

iii. A full-face photo of the passenger is taken

iv. Fingerprints of the passenger are taken

v. The migration officer checks the traveller's data against the alert list to determine if they are on a watchlist. In the case that a traveller is on a watch-list, the officer will then take necessary action according on specific instructions. For example, the migration officer may refer the case to their supervisor or take the traveller to the border police for further questioning, if deemed necessary.

vi. The migration officer records additional information about the traveller for future reference if needed.

STATUS ENDORSEMENT

Status endorsement involves granting a traveller entry into or exit out of a country.

Procedure:

i. The migration officer confirms that payment has been made for visa-prone passengers.

ii. The officer issues a visa sticker or stamps the travel document and captures a record of the traveller's migration status.

MANAGEMENT OF EXCEPTIONAL CASES

In some cases, there are exceptions to the normal travellers' clearance processes, for example in the case of the transit of refugees and asylum seekers, or migrants in irregular situations, including those that have arrived via migrant smuggling, or victims of trafficking (VoTs). In these instances, extraordinary or additional procedures may need to apply, including:

i. Establish Point of Origin of the passenger and inform the embassy for proper documentation. In some instances, they are returned under organized departure for deportation.

ii. For refugees, the Refugee Secretariat should inform UNHCR so they can repatriate the refugee to a refugee camp for identification and processing.

4.2. CHALLENGES IN BORDER CLEARANCE AT THE OSBP

i. **Porousness of land borders:** The clearance of people living on either side of a border (border communities) can be challenged by issues related to porous borders. When porous borders exist, , people can easily cross into another country without passing through gazetted points of entry/exit, thereby bypassing the normal procedures that should be followed at an OSBP.

ii. **Lack of knowledge of immigration procedures:** Most travellers are not aware of border crossing procedures. In some cases, this can result in them unintentionally evading clearance by immigration officials.

iii. **Technological issues:** Most border posts are located in rural places without network connectivity. As a result, the clearance of travellers through immigration systems can be challenging, as most border management information systems require internet connection to function effectively.

iv. **Conflicting agency mandates:** Various agencies with different mandates can operate at OSBPs. As a result, agencies can sometimes play conflicting roles during the clearance process.

v. **Extortion and corruption:** People posing as immigration officials, and in some cases immigration officials themselves, may engage in bribery and the extortion of travellers.

TOPIC 5: PROFESSIONAL CONDUCT IN MIGRATION MANAGEMENT

A migration officer is the first point of contact in a new country. To serve their clients effectively, migration officers need to practice basic principles of professional. ethics, which can improve their professional conduct.

Professional conduct relates to how people conform, be acceptable, and become a refined professional in society or in an office setting. The rules of professional ethics enable the smooth and predictable pattern of business transactions in an institution.

5.1 BACKGROUND TO PROFESSIONAL CONDUCT IN MIGRATION

Professional conduct in a migration context refers to the acceptable norms and practices that should be taken to fulfil migration duties and responsibilities. An Immigration Officer (IO) at any station should fulfil their professional obligations competently and diligently to conform to the expectations of clients and stakeholders.

An IO is trained to understand the obligations of their office, which are informed by the migration legal framework and attendant migration procedures and regulations in their respective contexts.

In the setting of an OSBP, IOs should refrain from providing any services that fall short of expected standards and should not act beyond the scope of their duties as defined by the office.

5.2 TENETS OF PROFESSIONAL CONDUCT IN MIGRATION

ETIQUETTE

Etiquette refers to the collective social or institutional manners or behaviour that is acceptable in interaction, communication, and proper association. It includes the formal standards or rules of correct and polite behaviour in society or among members of a profession.

As such, etiquette refers to the forms of behaviour that are expected as a result of good manners or customary practice. In the context of a professional setting, good etiquette thus calls for polite

behavior, as established by social convention, to help create a proper business environment and ensure the smooth delivery of professional services.

Migration officers are encouraged to have good etiquette, including by using proper language when disseminating information and engaging in dialogue. In this view IOs should:

i. Use correct grammar and polite words in a conversation
ii. Avoid being arrogant or loud when discussing and passing on information
iii. Listen to others before speaking to demonstrate respect

DRESS CODE

A dress code refers to the manner of fitting one's clothes and attendant regalia to align with the officialdom and authority vested in a particular position or office. Dress codes can be applied to customs, occasions, cultures, professions, activities, and more.

Business or office dress codes should also be aligned with the uniform prescribed by respective governments in Partner States. The recommended dress code may include:

i. Official uniforms should be well-fitted (with no excess or overflowing material)
ii. Uniforms should be clean/have no visible stains and well pressed
iii. No jewellery/accessories should be adorned when an officer is in uniform
iv. Uniform apparels should be clean and well-pressed
v. No caps or hats should be worn
vi. No flip-flops or sandals should be worn while on duty
vii. No displays of the shoulders, midriff, or chest should occur
viii. No imprints that bear offensive language or images should be on the uniform
ix. No underclothing should be on visible display

CODE OF CONDUCT

A code of conduct for migration officers is a guide that sets out the principles meant to be observed by immigration officers when carrying out official procedures and controls in an honest manner.

Migrations officers are obliged to carry out their duties in a way that maintains public confidence in the office in the following ways:

i. Migration officers should treat the public and their fellow public officers with courtesy and respect
ii. To the extent appropriate to a migration office, IOs should seek to improve the standards of performance and level of professionalism
iii. IOs should observe official working hours and not be absent without proper authorization or reasonable cause
iv. IOs should maintain appropriate standards of dress and personal hygiene at all times
v. IOs should discharge responsibilities pertinent to migration services by sticking to regulatory and legal provisions

ETHICS AND INTEGRITY

Ethics and integrity are defined as the quality of being honest and having strong moral principles, including when occupying a public office. An immigration officer at any station should fulfil their professional obligations competently and diligently to conform to the expectations of clients and stakeholders, and should observe the following required individual ethics and integrity principles:

i. Avoid criticizing others openly or covertly
ii. Resist raising complaints about circumstances without justification.
iii. Avoid gossiping about colleagues regardless of differences that may arise on a professional or personal level
iv. Respectfully disagree with without verbally attacking or condemning others
v. Refrain from engaging in any type of unprofessional activity, such as bribery and the facilitation of the irregular movement of persons
vi. Decline unlawful requests from colleagues or stakeholders to circumvent migration procedures/practices
vii. Do not disclose any confidential information about the government or clients to unauthorized personnel

viii. Protect the image of the office by taking proper care of the facilities and equipment at their disposal

ix. Advance the goal of service delivery without prejudice or discrimination

x. Strive to expose malpractice at the workplace at all times to protect both professional and institutional interests

TIME MANAGEMENT

It is imperative that a migration officer adhere to the following time management principles whileperforming their duties:

i. Appreciate the value of time for yourself and others

ii. Be punctual and prioritize arriving on time when on duty

iii. Call to inform the office when arriving late

iv. Never leave the designated workstation unattended

v. Only take breaks from the workstation when necessary, and ensure breaks are taken at an appropriate time to enable a continuous work flow

Ensuring that clients are rapidly cleared as soon as they report to the designated workstation should always be prioritized. Clients with queries or those seeking further information after service hours should be politely referred to the immediate supervisors on duty.

TEAMWORK

Teamwork is the concept of people working together cooperatively, and supporting each other to strive towards a common goal. Teamwork allows a group of people with different skills, interests, and opinions to work together as a unit to reach this goal effectively. Teamwork in migration is essential for the work output in an OSBP and can be achieved through:

i. Positive recognition of the other officers' duties

ii. Building channels for consultations about work-related activities

iii. Integrating inclusivity into the planning and execution of migration activities

iv. Learning about the strengths of the colleagues and empowering them to act or execute duties accordingly

Teamwork in migration at the OSBP should address the following challenges:

i. Delays in processing passengers
ii. Slow decision-making on emerging queries regarding migration processes
iii. Constraints in addressing customer needs and interests at the OSBP

Teamwork should be achieved at both internal and external levels. Internally, migration officials are required to execute their duties cohesively. Externally, migration agencies are encouraged to coordinate with other agencies to ensure that they can jointly enhance border security and facilitating human mobility. To foster effective teamwork, migration agencies should appoint a liaison person at the border to coordinate with the following stakeholders:

i. Customs officials
ii. The standards agency
iii. The police, including units related to criminal investigations, anti-narcotics, special crimes prevention, and anti-terrorism
iv. Port health officials
v. The animal health unit
vi. The environmental health unit
vii. Intelligence officials
viii. The wildlife authority

Migration agencies should also continuously consult with the above-mentioned agencies whenever there is need to ascertain or confirm information about an individual who has been flagged, before deciding whether to deny or allow them entry/exit.

TOPIC 6: MANAGEMENT OF CROSS BORDER COMMUNITIES

Border communities broadly constitute groups of people with similar social and cultural values, yet these communities are also dynamic and fluid. Addressing the local interests of border communities is key to achieving border security objectives. In this regard, ensuring that migration officers and related stakeholders understand the principles and practices of dealing with border communities is imperative.

6.1 MANAGEMENT OF POROUS BORDERS

As the world becomes increasingly globalized, the importance of ensuring effective border control, and managing the various challenges involved, remains paramount. Borders serve a wide range of functions across the areas of security, economics, politics, and social interactions. Yet, ensuring effective border control is often complicated by States who fail to enforce the regular and legal movement of persons on their border lines of jurisdiction, leading to porous borders. This puts the ability of border protection to legally regulate the movement of people, goods and ideas to the test.

Porous borders in a territorial jurisdiction contributes to the following challenges:

i. Irregular movement of persons through unapproved routes
ii. Increased incidences of smuggling, trafficking in persons, and terrorism.
iii. The movement of prohibited and wanted persons into or out of the country without detection
iv. The breach of immigration laws by travellers into or out of the country.
v. Failed efforts by border agencies to prevent and detect criminal offences or detect and apprehend the perpetrators involved
vi. Illegal trade through movement of contraband goods

6.2 CHARACTERISTICS OF BORDER COMMUNITIES

i. Border communities are mainly communities that are settled in the borderline of at least two territorial entities
ii. The border line of a country could split a homogenous community and place them under two difference political and legal jurisdictions
iii. Border communities can also be difficult to manage in contiguous territories since members of border communities have strong ties based on the following factors:[84]

    i. The relations of the families across the border.
    ii. The linguistic proximity and language relations.
    iii. Socio-economic infrastructure sharing
    iv. Religious affiliation
    v. Religious practices
    vi. Cultural rites

Border communities also share similar characteristics as a result of economic activities, including marketing centers, trade practices, and property ownership. These features and characteristics can contribute to porous borders, serving as an impediment to effective survelliance and border controls. These issues will be addressed below.

6.3 FACILITATION OF BORDER COMMUNITIES

At OSBPs, border authorities at contiguous areas should deliberately make joint decisions to facilitate the movement of border communities across the border line. These joint decisions should take into consideration the socio-cultural and economic activities and needs of border communities. On this basis, OSBPs should:

[84] Tyson, 2018.

i. Ensure efficient coordination at all administrative levels to develop a common outcome in migration facilitation
ii. Promote cohesion in cross-border movement and management
iii. Enhance automation of systems and trade facilitation for the border community[85]

Migration agencies in OSBPs should also design and adopt short-term travel arrangements for border communities. To facilitate this, migration agencies should:

i. Provide members of border communities with an easily accessible written authentication that demonstrates that they belong to the local community, and can exit/enter a territory for a short period of with a time frame of not more than 72 hours.
ii. Establish a system of identification for local community members to facilitate the issuance of a border pass (e.g. Rwanda) or *un jeton* in DRC.

6.4 BORDER COMMUNITY ENGAGEMENT

Border management seeks to eventually address the interests of the State. However, a border cannot be secured if issues that affect the border community are left addressed. In addition, local communities can also determine whether an OSBP is a success, meaning that OSBP management should engage local governments and community leaders early in the design process. Local border communities can also help disseminate information on the OSBP and inform other travellers on the OSBP process.

At any OSBP, the following key issues should be considered to facilitate the effective management of cross-border communities:[86]

i. As border communities may be eligible for simplified clearance processes[87], such as interstate passes, adjoining state governments may consider implementing a counter for local residents and border pass holders at the border

[85] Khaguli, 2013.
[86] AUDA, NEPAD-JICA, 2022.
[87] OSBP immigration managers should reach an agreement on the permissibility of local travel permits as a travel document, and then take action accordingly.

ii. In cases where local travel permits are not considered valid as travel documents, a robust system should be developed that can issue permits while avoiding being misused, such as by using biometrics
iii. Clear signage, in local languages, and a solid communication strategy should be developed to help raise awareness among border communities on the purpose and benefits of the OSBP
iv. Changes in tradeable goods, tariffs, and other restrictions should be clearly communicated to the border community, including through close engagement with cross border trade associations
v. A Trade Information Desk (TID) should be established at the border post

Communities can also be assigned the following important roles:

i. Allocate responsibilities among the community to proactively address security concerns, such as alerting authorities of the presence of perpetrators and/or illegal activities occurring within their region
ii. Appoint community focal points to facilitate conflict mitigation/resolution
iii. Establish a framework for consultation and permanent exchanges with authorities

The border community can also be engaged in border security management to ensure a community-sensitive approach, by supporting efforts to:

i. Gather and disseminate information
ii. Incorporate community representatives in security meetings
iii. Sensitize the border community on emerging security threats
iv. Inform the border community on reporting procedures for activities or trends that could constitute a threat to border security

6.5 CONFLICT RESOLUTION MECHANISMS

Conflict resolution mechanisms refer to the steps that are formally put in place by the State agencies to mediate or negotiate grievances raised by border communities. The legal/regulatory instruments

governing an OSBP should contain an alternative dispute/conflict resolution mechanism, such as amicable settlement or consultation. At the State-to-State level, conflict resolution mechanisms should be included in bilateral agreements, which can relate to macro-level issues such as demarcation or trade liberalization challenges. At the operational level, disputes can also be resolved either judicially or through an alternative channel, such as in the form of a mediator, ombuds officer, complaints desk/mechanism, or similar institution.[88] As illustrated below, efforts to support conflict resolution and peaceful co-existence can also take innovative forms, such as peace caravan and benchmarking tour.[89]

The grievances that border communities may raise include:

i. Competition over transboundary natural resources
ii. Accessibility to certain cross-border villages
iii. Socio-cultural differences
iv. Cross-border accusations over crimes
v. Lack of communication on institutional functionality
vi. Territorial control

The conflict management strategies in cross-border disputes include:

i. Establishing effective mechanisms of the settlement of boundary and territorial disputes
ii. Negotiation platforms through inter-agency institutions
iii. Inter-sectoral mediation
iv. Institutional arbitration
v. Employing a litigation dispute resolution strategy for functional zones including buffer and neutral areas
vi. Conflict avoidance strategies[90]

[88] AUDA, NERAD-JICA, 2022.
[89] EAC, n.d.d.
[90] Lindley, 2019.

Text Box 2: Peace Caravan and Benchmarking Tour for Border Communities in Kenya, Uganda, and South Sudan

One example of successful conflict resolution and peace-building initiatives related to integrated border management is the peace caravan and benchmarking tour that the East African Community (EAC) Secretariat, in collaboration with the republics of Kenya, Uganda, and South Sudan, launched in July 2023. The overall aim of the peace caravan and benchmarking tourwas to promote peaceful co-existence and conflict resolution among border communities in selected areas where border and/or boundary issues have been peacefully resolved, as well as in areas where border communities face persistent issues. The peace caravan started in at the Namanga One Stop Border Post (OSBP) between Kenya and Tanzania, where it created space for dialogue and exchange between members of the Masaai community who live on both sides of the border. The peace caravan and benchmarking tour also included conferences on peaceful co-existence and regional integration, which supported efforts at sensitizing border communities on how to peaceful resolve disputes.

TOPIC 7: TRANSNATIONAL ORGANISED CRIME

Transnational organized crime refers not only to offences committed in more than one State, but also crimes that take place in one State that are planned and controlled in another, crimes that are committed in one State by groups that operate in more than one State, and crimes committed in one State that have substantial impacts in another State.

Transnational organized crime encompasses virtually all profit-motivated serious criminal activities with international implications. This broad definition takes account of the global complexity of the issue and allows cooperation to take place across a wide range of common concerns.[91]

Tackling transnational organized crime globally and particularly in the East African region is a priority, due to the extent of the crime and the growing number of illicit activities[92]. In fact, translational organized criminal groups have linkages across borders throughout the East Africa region, and are active in a number of illicit markets, including trafficking in persons, drugs, and goods, migrant smuggling, maritime piracy, financial crimes and fraud, theft and robberies, and organized violence.[93]

Ensuring effective border control is critical to detect criminal activities, such as human trafficking, due to the exploitation of porous borders by transnational organized criminals. However, these measures must avoid penalizing irregular migrants, particularly those fleeing exceptional circumstances including conflicts or climate-related events. It is essential to acknowledge that individuals initially involved in smuggling may become victims of trafficking (VoTs) during their journey. Unfortunately, labeling VoTs as smuggled migrants can hinder their access to legal remedies, a concern that will be further discussed below.

To ensure the security of both the communities in the receiving country, and the migrant themselves, it is thus essential that stakeholders, including those at the local level dealing directly with vulnerable

[91] UNODC, n.d.
[92] UNODC, 2009.
[93] GCTF, 2021.

populations, adopt a victim-centered approach that considers the context in which people are migrating, at all stages of their migratory journey.

7.1 TYPES OF TRANSNATIONAL ORGANIZED CRIME

Transnational organized crime can take many forms and involve a range of illegal or criminal activities.[94] Criminal organizations may engage in multiple types of criminal activity and their operations can be highly sophisticated and adaptive to changing circumstances. Some examples of the types of transnational organized crime include:

- **Arms trafficking:** This involves the illegal trade of firearms and other weapons across national borders, which can fuel conflicts and contribute to violence and instability.
- **Corruption:** This is the abuse of power or position for personal gain, which can undermine democratic institutions, public trust, and economic development.
- **Counterfeiting:** This involves the production and sale of fake or counterfeit goods, such as luxury goods, pharmaceuticals, and currency.
- **Cybercrime:** This is the use of computers and the internet to carry out illegal activities, such as hacking, identity theft, and fraud.
- **Drug trafficking:** This is the production, transportation, and sale of illegal drugs, such as cocaine, heroin, and methamphetamine, across national borders.
- **Money laundering:** This is the process of making the illegal acquisition of money appear legitimate, typically through complex financial transactions and networks.
- **Terrorism:** This involves the intimidation or coercion of populations or governments through the threat or perpetration of violence, causing death, serious injury or the taking of hostages.
- **Trafficking in Persons:** It involves the recruitment, transportation, and exploitation of people for purposes such as forced labour, sexual exploitation, or organ harvesting.
- **Wildlife trafficking:** This is based on the illegal trade of protected species, such as elephants and rhinos, and their body parts, which can lead to the decline of these species and damage ecosystems.

[94] Williams and McDonald, 2018.

7.2 CAUSES OF TRANSNATIONAL ORGANIZED CRIME IN EAST AFRICA

The motives for transnational organized crime in East Africa are complex and usually vary depending on the specific criminal activity and environment. However, the commonly cited factors that drive transnational organized crime in the region are:

PROFIT

Criminal organizations engage in illegal activities to generate profits, and East Africa has gaps that attract criminal activities, such as drug trafficking, human trafficking, and wildlife trafficking. The region has porous borders, weak law enforcement, and some corrupt officials which make it easier for criminal organizations to operate and evade detection.

POVERTY AND UNEMPLOYMENT

Poverty and unemployment in the region provide a pool of vulnerable individuals who can be recruited into criminal activities, such as smuggling or theft. Some criminal organizations also provide employment opportunities to individuals who lack other options, which makes them reliant on the criminal enterprise for their livelihoods.

POLITICAL INSTABILITY AND CONFLICT

Political instability and conflict in the region create conditions where criminal organizations can operate with relative impunity, using violence and intimidation to protect their operations. They may also exploit the chaos and displacement caused by conflict to engage in activities such as arms trafficking and human trafficking.

WEAK GOVERNANCE AND CORRUPTION

Weak governance and corruption in the region provide opportunities for criminal organizations to establish relationships with corrupt officials, which facilitates their operations and protects them from law enforcement.

DEMAND FOR ILLEGAL GOODS AND SERVICES

The demand for illegal goods and services, such as drugs, wildlife products, and counterfeit goods in other parts of the world, drives criminal organizations to operate in East Africa, where they can obtain these products and transport them to other markets to meet demand.

Generally, transnational organized crime in East Africa is caused by a combination of economic, social, and political factors, and driven by illicit markets and weakness in rule of law, which create an environment that attracts criminal activity.[95] The migration departments in all countries in East Africa should make effective use of OSBPs to eliminate or reduce cases of transnational organized crime.

7.3 STRATEGIES FOR DETECTING CRIMINAL ACTIVITIES AT AN OSBP

Detecting criminal activities at an OSBP is the responsibility of all citizens in the region. However, achieving this goal can be a challenge due to the complex nature of transnational organized crime. Border agencies can also suffer from limited resources and capacity. Despite these challenges, some strategies that can be employed to help detect criminal activities at the OSBP include:

IMPROVE INTELLIGENCE GATHERING

Border agencies can work with intelligence agencies to gather information on criminal networks and their activities, as well as to identify high-risk individuals and cargo. This can involve the use of data analysis, risk assessment, and information-sharing platforms to identify potential threats.

STRENGTHEN BORDER CONTROLS

Border agencies can improve their physical and technological infrastructure to enhance border controls, such as installing CCTV cameras, X-ray machines, and other screening equipment. They can also increase the number of trained staff to carry out inspections and regular patrols.

[95] UNODC, 2013.

IMPLEMENT JOINT OPERATIONS

Border agencies can work together with other law enforcement agencies, such as police and customs, to conduct joint operations to detect and intercept criminal activities. This can involve intelligence sharing, joint patrols, and joint inspections of cargo and vehicles.

ENGAGE IN COMMUNITY OUTREACH

Border agencies can engage with local communities to build trust and encourage them to report any suspicious activities. This can involve community education programmes, community policing, and community-based monitoring.

STRENGTHEN LEGAL FRAMEWORKS

Governments can strengthen their legal frameworks and policies to address transnational organized crime, such as by enacting and enforcing laws that criminalize specific activities, and by strengthening judicial and law enforcement institutions.

TRAINING OF BORDER OFFICIALS

Providing training and capacity-building programmes for border officials can enhance their skills and knowledge on detecting criminal activities. This includes training in document verification, risk assessment, and profiling techniques.

Overall, more resources, strengthened capacity-building, and greater collaboration between multiple agencies and stakeholders are needed to ensure the East Africa region can effectively detect crime. However, despite these gaps, border agencies in East Africa can improve their ability to detect and prevent criminal activities at the OSBP by employing a comprehensive and coordinated approach, and utilizing the various strategies outlined above.

7.4 STRATEGIES FOR KNOWLEDGE-SHARING ON CRIMINAL ACTIVITIES AT AN OSBP

Knowledge-sharing on criminal activities among agencies operating at OSBPs in East Africa can enhance border security and improve the detection and prevention of criminal activities. The strategies that can be used to facilitate knowledge-sharing are:

REGULAR MEETINGS

Organize regular meetings among agencies operating at OSBPs to discuss criminal activities and share information. This can help identify emerging trends and patterns and provide a platform to discuss strategies to detect and prevent criminal activities.

JOINT TRAINING

Provide joint training opportunities for agencies operating at the OSBPs to enhance their knowledge and skills in detecting and preventing criminal activities. This can include training in areas such as document verification, risk assessment, and profiling techniques.

INFORMATION SHARING PLATFORMS

Establish information-sharing platforms, such as secure communication networks and databases, where agencies can share intelligence and information on criminal activities.

STANDARD OPERATING PROCEDURES (SOP)

Develop SOPs for information sharing among the agencies operating at the OSBPs. The SOPs should clearly outline the roles and responsibilities of each agency in sharing information and responding to criminal activities.

COORDINATION MECHANISMS

Establish coordination mechanisms to ensure that information is shared in a timely and efficient manner. This can include designating focal points within each agency responsible for sharing information and ensuring that information is communicated through the appropriate channels.

CROSS-BORDER COOPERATION

Enhance cross-border cooperation among the agencies operating at the OSBPs in different countries to facilitate the sharing of information and intelligence. This can involve establishing joint operations and sharing resources to enhance border security.

7.5 TRAFFICKING IN PERSONS

Trafficking in persons (TIP) is a serious crime and is considered a form of modern-day slavery and is a violation of human rights. TIP is a highly profitable industry, which generates billions of dollars in illegal profits for traffickers each year. Victims of trafficking (VoTs), however, often come from disadvantaged backgrounds, with groups who are particularly at risk including undocumented migrants, ethnic minorities, and unaccompanied children. Several factors, including poverty, unemployment, and lack of education, can also make someone more at-risk of becoming a VoT. As outlined in the United Nations Protocol to Prevent, Suppress, and Punish Trafficking in Persons Especially Women and Children[96], also known as the Palermo Protocol, Tip is defined as:

> *The recruitment, transportation, transfer, harbouring, or receipt of persons, by means of the threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability or of giving or receiving of payments or benefits to achieve the consent of a person having control over another person, for the purpose of exploitation.*

Put simply, human trafficking is when a person is tricked, sold, or forced into a slave-like situation against their will in order to be exploited for profit. For law enforcement offers to establish that TiP has occurred, they must prove that three stages have taken place: the act, the means, and purpose. The act can include recruitment, transport, transfer, harboring, or receipt of persons; means can include the threat or use of force, coercion, abduction, fraud, deception, abuse of power or vulnerability, or giving payments or benefits; while the purpose behind why traffickers engage in human trafficking can include the forced commercial sex work of others, sexual exploitation, forced labour, slavery or similar practices, the removal of organs, or other types of exploitation.[97]

Understanding the type of exploitation that victims of trafficking face is critical, as many victims are only identified after they have been exploited. As elaborated by the Palermo Protocol, exploitation includes, at the minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labour or services, slavery or practices similar to slavery, such as debt bondage, serfdom, the sale of children for exploitation, servitude, or the removal of organs.[98] Other forms of

[96] UN, 2000c.
[97] IOM, 2022.
[98] UNODC, 2020.

exploitation in practice include exploitation for forced begging and criminal activity, such as drug cultivation or using people to transport drugs. [99]

TIP is a global problem which affects millions of people around the world. Victims can be trafficked within their own country or across borders and may be forced to work in industries such as agriculture, construction, domestic work, or sex work. However, it is also a crime that is difficult to detect and combat, as victims are often kept in isolation and forced to live in fear and under control. Communication challenges, and a reluctance among victims to speak to authorities, can also complicate identification efforts.

GLOBAL AND REGIONAL LEGAL FRAMEWORK TO COMBAT TIP

Given this, a more inclusive and victim-centered approach is needed to combat TIP, which does not penalize the VoT. International, regional, national laws and frameworks have been established to combat trafficking, protect victims, and prosecute traffickers. At the international level, the Palermo Protocol remains the defining legal instrument related to TIP. However, other international legal instruments include the International Covenant on Civil and Political Rights (ICCPR)[100], and the Optional Protocol to the Convention on the Rights of the Child on the Sale of Children, Child Prostitution, and Child Pornography[101], and the Protocol Against the Smuggling of Migrants by Land, Sea, and Air, Supplementing the United Nations Convention against Transnational Organized Crime[102].

At the regional level, there are also several legal instruments that provide a framework to support counter-trafficking efforts, including the African Charter on Human and Peoples' Rights[103], the African Charter on the Rights and Welfare of the Child[104], and the East African Community (EAC) Legislative Assembly (EALA)[105]. Within the EAC, individual countries also have their own national legal frameworks to support counter-trafficking efforts. In the African region, the Ougadougou Plan of

[99] Stop the Traffik, n.d.
[100] UN, 1996.
[101] UN, 2000a.
[102] UN, 2000d.
[103] OAU, 1981.
[104] OAU, 1990.
[105] EAC, 2015.

Action to Combat Trafficking in Human Beings[106], especially Women and Children (2006), also provides a comprehensive framework to combat trafficking in the region.

THE 4P'S APPROACH TO COMBATTING TIP

Regardless of the national context, however, the most widely adopted approach to combatting TIP is the '4P's approach, which relates to: prevention, protection, prosecution, and partnership.

As outlined by the Palermo Protocol, prevention includes efforts to address the supply and demand sides of TIP, including by conducting research to gain a better understanding of the root causes of TIP, supporting economic and social development, preventing corruption, and implementing awareness-raising campaigns.[107] Empowering women and girls, who remain particularly vulnerable to human trafficking, is also critical, and can be achieved through efforts to eliminate gender-based discriminate and promote women's rights, providing equal opportunities for education, economic empowerment, and job training, and delivering gender-sensitive campaigns.

When developing these campaigns, Governments, NGOs, and community leaders should work together to educate people about the signs of trafficking and how to report it. Communication campaigns aimed at changing behaviors that encourage or facilitate human trafficking should also be developed and disseminated to individuals and communities in countries of origin and destination.[108] Particularly relevant in an OSBP context, strengthening border controls and training border officials is also essential, including by improving surveillance, screening, and identification of potential victims.

Protection calls upon relevant stakeholders to adhere to the "3R's" of protection – rescue, rehabilitation, and reintegration. Proper identification of a VoT is often the first step to ensure that these 3R's can be achieved. The process of identification is based on an effort to link victims' characteristics with key elements in the TIP definition, to observe key indicators of trafficking - such as signs of physical abuse – and conduct a screening interview. Fundamentally, It is the State's responsibility to ensure that all people, including migrants, benefit from protections outlined in

[106] AU, 2006a.
[107] MIEUX, 2020.
[108] For guidance on developing these materials, see IOM X's toolkit on how to develop effective behavior change by applying a Communication for Development (C4d), evidence-based, and participatory framework to tailor messages for activities: C4D Toolkit_2018 (iom.int).

international law, which can include a combination of the laws, regulations, policies, and programmes that can be delivered by various stakeholders. Once a VoT is identified, they are immediately entitled to protection and assistance, including shelter and accommodation, medial and healthcare services, livelihood, employment, family tracing, assessment, and reunification, return and reintegration assistance, and access to justice.[109] Victims of human trafficking require significant support to recover and reintegrate

Prosecution calls upon States to criminalize TIP, which is essential to ensure that traffickers are prosecuted, trafficking networks are dismantled, and victims are protected. As outlined above, for a law enforcement officer to establish that TiP has occurred, they must prove that three stages have taken place: the act, the means, and purpose. However, if the victim is a child, the "means" element, which is used to determine the consent of the victim or person involved in the case, is not required, as children are not able to give their consent. In this regard, law enforcement agencies should receive specialized training to identify and assist VoTs, and investigate and prosecute traffickers.

Lastly, partnership calls upon stakeholders to cooperate to combat TIP, including both between and within States. Cooperation between States can include provisions concerning border and document control measures, extradition and requests for mutual legal assistance, training, research, and information exchange.[110] Governments, NGOs, and international organizations should also work together to share information, coordinate efforts, and combat trafficking across borders.

It is important to note that TIP can take many forms, and look very different depending on the context in which it is taking place.

REDUCING TRAFFICKING IN PERSONS THROUGH OSBP IN EAST AFRICA

OSBP is a border management concept aimed at improving the efficiency of cross-border trade and reducing transit time at border crossings. However, OSBPs can also play a significant role in reducing TIP in East Africa through the following strategies:

[109] OHCHR, 2002.
[110] IOM, n.d.b.

- **Increased Border Monitoring:** OSBPs can facilitate a more systematic and coordinated approach to border monitoring. This can help detect and prevent human trafficking at border crossings.
- **Improved Screening and Identification of Trafficked Persons:** OSBPs can have trained personnel and equipment to screen individuals at the border, including using technology such as biometric identification. This can help identify potential victims of human trafficking.
- **Coordinated Action:** OSBP can facilitate better coordination between different agencies involved in preventing TIP. For example, border guards, police, customs officials, law enforcement officials, labour inspectors, and immigration officers can work together to share information and collaborate to stopTIP. This coordination is also essential as there is often a disconnect between how distinct stakeholders approach human trafficking – such as law enforcement officials who undertake criminal investigations of traffickers, and labour inspectors who are mandated to example labour law violations that can be indicators of criminal exploitation - which can weaken the effectiveness of counter-trafficking strategies.
- **Capacity Building:** OSBPs can provide training for borders officials on how to detect, identify, and support VoTs or potential VoTs. Border officials can also be trained on which services are available to refer VoTs to, including those related to mental health and psychosocial support.
- **Data Collection and Analysis:** OSBPs can help gather data on trafficking trends and patterns at border crossings. This information can be used to identify areas of high risk, improve prevention strategies, and better understand the scale and nature of human trafficking.

7.6 SMUGGLING OF MIGRANTS

According to the Protocol against the Smuggling of Migrants by Land, Sea and Air, otherwise known as the United Nations Smuggling of Migrants of Protocol, defines the 'smuggling of migrants' as the procurement, in order to obtain, directly or indirectly, a financial or other material benefit, of the illegal entry of a person into a State party of which the person is not a national or a permanent resident.[111] Smugglers are paid to facilitate the transportation of individuals who may be seeking to

[111] See: United Nations Smuggling of Migrants Protocol, Article 2[a].

migrate for various reasons, such as economic opportunities, political instability, or fleeing persecution and environmental disasters.

Unlike human trafficking, human smuggling usually involves the consent of the person being transported, particularly as many irregular migrants succeed in reaching their destination country using smugglers, which increases the appeal of smuggling as a viable option to reach a destination. However, a migrants' willingness at the start of their journey does not mean that they are not at risk of harm or exploitation, nor that they are not likely to change their minds at some point during the migratory journey. Smugglers often use dangerous routes or means of transportation, such as overcrowded boats or trucks, which can put the lives of those being transported in danger. Smugglers may also subject individuals to abuse, extortion, or other forms of exploitation during the process of transportation.

Human smuggling is illegal under international law and the laws of EAC countries. Governments work to prevent and prosecute human smuggling through law enforcement efforts, including border controls, intelligence gathering, and criminal investigations. The United Nations Smuggling of Migrants Protocol also provides a helpful framework for States to establish legislation, policies, strategies, and action plans to address the smuggling of migrants.

However, it is also important to note that efforts to prevent human smuggling must be balanced with the need to respect the human rights of individuals seeking to cross borders, including those who may be seeking asylum or fleeing persecution. In fact, States are required to read the Protocol in line with international law, including international human rights law. The United Nations Smuggling of Migrants Protocol does not criminalize migrants who use the service of smugglers, but rather focuses on the smugglers themselves, with the aim of prosecuting those who profit from the crime of smuggling.[112] Vigilance when applying the label of smuggling to a migrant is also essential, as stakeholders who mistakenly apply the smuggling label to trafficked people, can block their access to legal remedies against this crime.

[112] IOM, n.d.b.

FORMS OF HUMAN SMUGGLING

Human smuggling takes many forms, and can involve various means of transportation and routes. Here are some common forms of human smuggling:

- **Airline and visa fraud:** Some human smugglers use fraudulent means to obtain visas and air travel documents for their clients, which allows them to enter a country legally but under false pretenses.
- **Boat and maritime smuggling:** This involves the transportation of people across water, either by small boats, fishing vessels, or larger ships. This can be a dangerous form of smuggling, as individuals may be packed into small boats or forced to cross treacherous waters.
- **Border tunnelling:** Some smugglers build tunnels under border walls or fences to transport people irregularly across the border.
- **Cross-border smuggling:** This involves the illegal transportation of people across international borders, often in clandestine ways, such as by sneaking them through checkpoints, over land or water, or through remote areas.
- **Document fraud:** Human smugglers may provide false documents or forge passports, visas, and other identification documents to help their clients cross borders.
- **Train and truck smuggling:** Human smugglers may transport individuals in cargo containers or trucks, often using smuggling routes that are dangerous and remote.
- **Work and employment smuggling:** In some cases, individuals may be smuggled to work illegally in another country, often under conditions of exploitation and abuse.

It's important to note that human smuggling is illegal, and individuals who engage in it are putting the lives of those they are smuggling at risk.

While Governments, law enforcement agencies, and international organizations should collaborate to prevent and prosecute human smuggling, a multi-faceted approach that also addresses the underlying reasons behind why people seek to migrate, and the provision of safe and legal avenues for migration, is needed.[113]

[113] OHCHR, n.d.b.

7.7 TERRORISM IN EAST AFRICA

Although there is no universally agreed-upon definition, at a minimum, terrorism involves the intimidation or coercion of populations or governments through the threat or perpetration of violence, causing death, serious injury of the taking of hostages.[114] Terrorism has been a significant problem in East Africa for several decades, with numerous attacks carried out by various terrorist groups in the region.

Some of the major terrorist incidents in East Africa include:

i. **1998 United States Embassy bombings**

   In August 1998, Al-Qaeda carried out bombings of the United States Embassies in Nairobi, Kenya, and Dar es Salaam, Tanzania, killing more than 200 people and injuring thousands.

ii. **2010 Kampala bombings**

   In July 2010, the Somali militant group Al-Shabaab carried out bombings in Kampala, Uganda, during the FIFA World Cup final, killing over 70 people.

iii. **2013 Westgate shopping mall attack**

   In September 2013, Al-Shabaab militants attacked the Westgate shopping mall in Nairobi, Kenya, killing more than 60 people and injuring hundreds.

iv. **2015 Garissa University College attack**

   In April 2015, Al-Shabaab militants attacked Garissa University College in North-Eastern Kenya, killing 148 people, most of whom were students.

v. **2019 Dusit D2 hotel attack**

   In January 2019, Al-Shabaab militants attacked the Dusit D2 hotel in Nairobi, Kenya, killing 21 people.

The terrorist groups operating in East Africa include Al-Shabaab, Boko Haram, and Al-Qaeda in the Islamic Maghreb (AQIM). These groups have carried out attacks on civilians, government and military targets, and international organizations.

[114] OHCHR, 2023.

The factors that drive terrorism in East Africa and in the region more broadly are numerous, and include political grievances, historical and ongoing ethnic and religious conflict and border disputes, poverty, and inequality. Climate change and desertification are also push factors, particularly as they can exacerbate inequality and reduce livelihood opportunities in the region.[115]

COUNTER-TERRORISM MEASURES

The problem of terrorism in East Africa remains a significant challenge that requires sustained efforts and international cooperation. Counter-terrorism refers to the actions taken to prevent, mitigate, and respond to acts of terrorism. Governments in the region have implemented various counter-terrorism measures to combat the threat of terrorism. Counter-terrorism measures that have been implemented in the region include a wide range of activities, such as:

- **Intelligence gathering and analysis:** This involves collecting and analysing information to identify potential threats and disrupt terrorist activities before they can be carried out.
- **Border and immigration controls:** This involves implementing security measures at borders and airports to prevent terrorists from entering a country or crossing a border undetected.
- **Law enforcement operations:** This involves taking legal action against individuals and groups involved in terrorist activities. This may include apprehending and prosecuting terrorists, disrupting terrorist networks, and seizing their weapons and other resources.
- **Military operations:** This involves using military force to eliminate terrorist groups and their infrastructure. This may include targeted airstrikes, ground operations, and special forces operations.
- **Diplomatic efforts**: This involves using diplomacy to engage with foreign governments to address the root causes of terrorism, resolve conflicts, and prevent the spread of violent extremism.
- **Financial measures:** This involves using financial regulations and sanctions to disrupt terrorist financing and fundraising activities.

[115] GCTF, 2021.

- **Public awareness campaigns:** This involves educating the public about the dangers of terrorism and how to prevent it, as well as encouraging people to report suspicious activities.
- **International cooperation and coordination:** The aim of international cooperation and coordination is to share information, resources, and best practices among countries in the fight against terrorism.

Effective counter-terrorism strategies require a comprehensive and integrated approach that includes a combination of all these elements. The commonly cited factors that drive transnational organized crime in the region can be better managed and mitigated if stakeholders coordinate their efforts, participate in information-sharing, and support political stability. However, it is essential that counter-terrorism efforts uphold human rights and the rule of law, while also addressing the underlying political, social, and economic factors that contribute to terrorism.[116]

INFORMATION SHARING FOR COUNTER-TERRORISM IN EAST AFRICA

Coordination and sharing of information are crucial components of effective counter-terrorism efforts in East Africa.[117] This is because terrorism is a transnational threat that requires a collaborative approach among countries in the region and beyond. In Africa, the sheer size of countries in the region also fosters porous borders that may be used for terrorist purposes, which can pose a challenge to effect counter-terrorism efforts.[118] Coordination and information sharing can help to prevent terrorist attacks, disrupt terrorist networks, and bring terrorists to justice.

GLOBAL AND REGIONAL FRAMEWORK TO COMBAT TERRORISM

To combat terrorism, international, regional, national laws and frameworks have been established. At the global level, since 1963, the international community has elaborated 19 international legal instruments to prevent terrorism acts, which were developed under the auspices of the United Nations and the International Atomic Energy Agency (IAEA).[119] At the regional level, various initiatives and mechanisms have also been established to enhance coordination and information sharing to support counter-terrorism efforts in East Africa. These are outlined below:

[116] Natarajan, 2019; UN, 2006b.
[117] Williams and McDonald2018.
[118] GCTF, 2021.
[119] OHCHR, n.d.b.

THE COUNTER-TERRORISM CENTER (CTC) - AU

The AU has established a Counter-Terrorism Center (CTC) to coordinate counter-terrorism efforts among African countries. The CTC works with Member States to develop and implement counter-terrorism strategies, promote regional cooperation, and share information and best practices.

THE COUNTER-TERRORISM CENTER (CTC) – IGAD

The Inter-governmental Authority on Development (IGAD) is a regional organization that brings together countries in East Africa and the Horn of Africa to promote peace, security, and development. IGAD has established a Counter-Terrorism Center (CTC) to coordinate counter-terrorism efforts and facilitate information sharing among member States.

JOINT COUNTER-TERRORISM UNIT (JCTU) - THE EAC

The EAC has established a Joint Counter-Terrorism Unit (JCTU) to coordinate counter-terrorism efforts among member States and facilitate information sharing.

THE GLOBAL COUNTER-TERRORISM FORUM (GCTF)

The GCTF is an international forum that brings together governments, organizations, and experts to enhance global cooperation and capacity-building for counter-terrorism. The GCTF has established several working groups focused on various aspects of counter-terrorism, including information sharing and capacity-building.

TOPIC 8: MANAGING ORDERLY MIGRATION IN TIME OF CRISIS

Crises, including human-made disasters, health emergencies such as global pandemics, and climate change-related disasters, often involve complex and large-scale migration flows, which typically involve significant vulnerabilities and risks for individuals and communities. During a crisis, border officials and immigration authorities not only need to ensure that the OSBP can continue to function, but also that migratory flows during the crises are managed in a safe, orderly, and humane way, while supporting the migrants affected and maintaining security of the border. To achieve this, extraordinary measures are needed, in line with humanitarian principles, human rights, and international health regulations. Enhancing and leveraging migrants' capacities and involving migrants that are affected by crises and disasters can also play a key role in contributing to disaster management, while also changing the ways in which host communities and institutions perceive migrants, thus supporting the development of interventions that can address their needs and vulnerabilities. These changes, in turn, can produce profound, positive, and transformative effects on the structural factors that influence the vulnerability of migrants to times of crisis, including during a natural disasters or health emergency.

To support effective migration management at an OSBP during a crisis, it is thus essential that border officials and immigration authorities have adequate knowledge and tools to ensure the OSBP can function effectively, while protecting the rights of people on the move. This chapter provides an overview of the vulnerabilities of migrants, as well as the specific situations and recommended actions to be implemented under exceptional circumstances.

8.1 VULNERABLE MIGRANTS

Vulnerable migrants are individuals that are regarded to be more susceptible to harm, abuse, exploitation or violence relative to others in a given society. The type of harm that vulnerable migrants are exposed to ranges from psychological to physical to environmental.

In line with this, IOM developed a Determinants of Migrant Vulnerability Model[120] to identify, protect, and assist migrants who have experienced or are vulnerable to violence, exploitation and abuse before, during, or after migrating, and to guide the development and implementation of interventions to reduce instances of vulnerability. According to this model, violence perpetrated against vulnerable migrants is defined as the intentional use of physical force or power, threatened or actual, that either results in, or has a high likelihood of resulting in, injury, death or psychological harm. Relatedly, exploitation is defined as the unfair treatment of a person for someone else's benefit, while abuse is defined as an improper act by a person in a position of relative power, causing harm to a person of lesser power including physical abuse, sexual abuse, abuse of a position of vulnerability, and psychological abuse. Lastly, exploitation is defined as the unfair treatment of a person for someone else's benefit.[121]

FACTORS ATTRIBUTED TO MIGRANT VULNERABILITY

According to the IOM Migrant Vulnerability Model, the risk factors that may increase vulnerability depend on the type of harm being examined and may or may not overlap. The model also recognizes that migrants and households/families, communities and groups to which they belong exist within a broader social context and considers resilience and vulnerability to be determined by the presence, absence, and interaction of risk and protective factors at four levels: the structural, individual, community, and household and family levels.

[120] IOM, 2019b.
[121] Ibid.

Figure 3: The IOM Determinants of Migrant Vulnerability Model[122]



i. **Individual factors:** This includes the status individuals hold in a society; physical and biological characteristics; histories and experiences; beliefs and attitudes; individual emotional, psychological, and cognitive characteristics; and physical and mental health and well-being. Individual characteristics are a central element of vulnerability and resilience, as they mediate how individuals respond to household/family, community and structural contexts. While all individuals are rights holders, the extent to which an individuals' rights are respected affects how individual factors impact vulnerability or resilience. Some examples of individual factors include age, sex, racial and/or ethnic identity, sexual orientation, gender identity, personal history, mental and emotional health, and access to resources such as money, goods, or support.

ii. **Household and family factors:** These are related to the family circumstances of individuals and their family members, the role and position of individuals within the family, and family histories and experiences. Families are important in determining vulnerabilities, as they are typically the first option for individuals who require support, particularly children and young

[122] IOM, 2019b.

people. While all members of the household and family are rights holders, the extent to which their rights are respected affects how family and household factors impact vulnerability or resilience. Examples of household and family factors include family size, household structure, socioeconomic status, migration histories, employment, livelihoods, education levels, gender discrimination and family dynamics.

iii. **Structural factors:** These are the political, economic, social, and environmental conditions and institutions at national, regional, and international levels that influence the overall environment in which individuals, families and communities are situated and which shape their beliefs, decisions, and behaviours. Structural factors are typically relatively stable and have both immediate and longer-term impacts. Examples of structural factors include histories of colonization and conflict, political systems, migration policies, governance, respect for human rights and the rule of law.

iv. **Community factors:** Individuals and their families are situated within a broader physical and social community context. They are affected by their community's economic, cultural, and social structures, and their positions within these structures. Some community factors may affect groups within the community differently, making some groups more vulnerable and others less so, such as social networks that provide support to some groups but exclude others.

The overall vulnerability and resilience of an individual migrant is thus the result of the interaction of multiple risk or protective factors at each of these levels. Failure to take these considerations into account can thus exacerbate vulnerability and have other negative spill-over effects for migrants, including by creating an enabling environment for situations that can lead to the violation of migrants rights, such as trafficking in persons.

PROTECTING VULNERABLE MIGRANTS AT THE OSBP

In line with IOM's approach to migrant vulnerability, the human rights of migrants should be upheld and promoted at all levels, while all vulnerable migrants, regardless of their status, should be afforded the protection and assistance they require, including during a crisis. This calls on migration services operating at entry points to assess the vulnerability of migrants to:

i. Determine their protection needs
ii. Determine the response required to fulfil those needs

This screening process, in turn, can also help determine if a migrant's level of vulnerability guarantees them one of the following statuses:

i. Asylum seeker
ii. Refugee
iii. Victim of trafficking
iv. Child
v. Older person

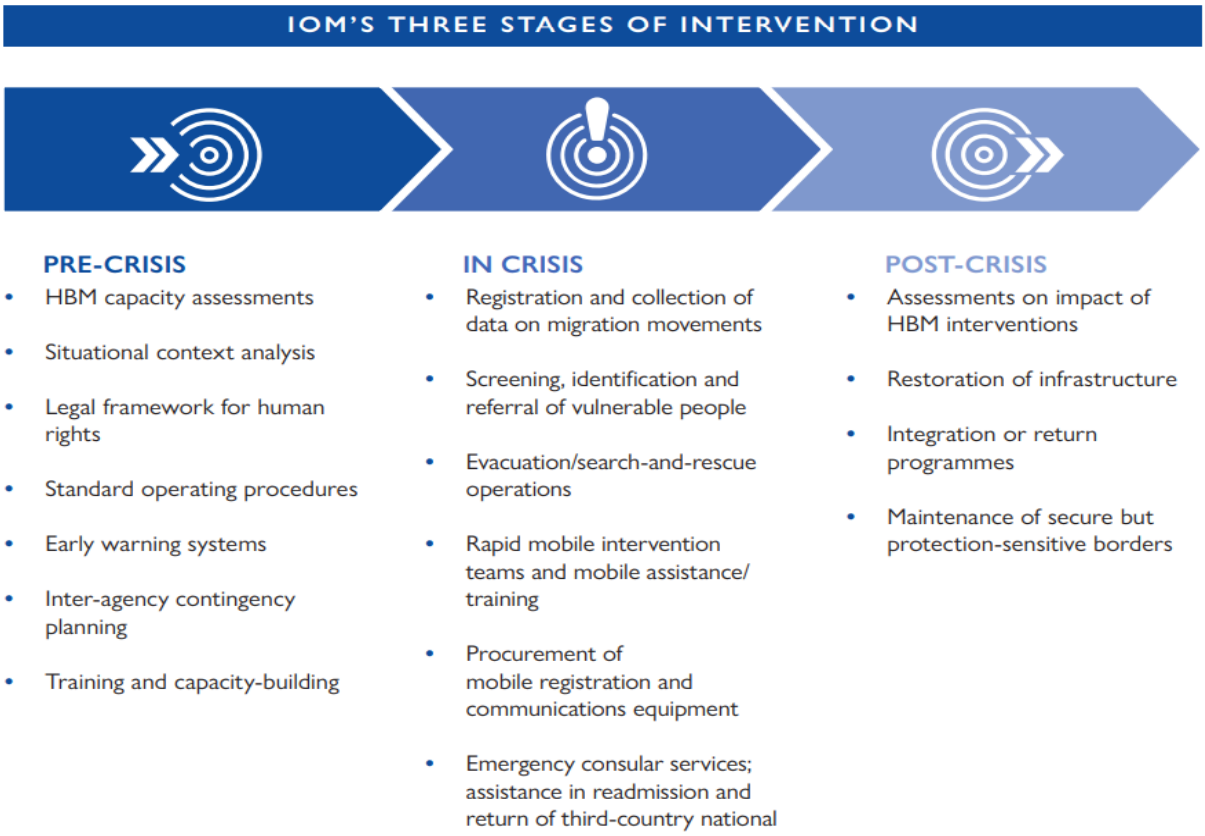
8.2 HUMANITARIAN BORDER MANAGEMENT

In line with this, humanitarian border management (HBM) refers to border operations carried out before, during, and after humanitarian crises which trigger mass cross-border migration.[123] These crises typically result in mass migratory movements from one territory into another to seek protection or safety. HBM is essential in that it guides stakeholders at points of entry on how to correctly apply procedures in exceptional cases, for example in the event of a natural disaster or political instability in a foreign country which compels citizens to migrate to another country. Overall, the objective is to improve preparedness of border authorities to respond appropriate to cross-border movements that arise from disasters, in a way that ensures that the human rights and interests of migrants are upheld, and that national sovereignty and security are protected. HBM can also help prevent the closure of borders and assist the international community in effectively responding to humanitarian needs. Within an OSBP setting, the HBM framework is also well-positioned to fulfil this objective, as it can leverage the already-existing bilateral mechanisms, regular coordination and information-sharing, and clear communication channels that the management of such a border entails.

[123] IOM, 2019c.See IOM's three stages of intervention during humanitarian border management.

To support countries in need to manage to the mobility dimension of humanitarian crises, the IOM Council adopted the Migration Crisis Operational Framework (MCOF), through its Resolution No. 1243/2012, upon request from its Member States. [124] The MCOF, which serves as a practical tool to improving the way IOM supports Member States in preparing for and responding to migration crises, also includes specific guidance on humanitarian border management, based on three phases of intervention: before a crisis occurs (preparedness and mitigation), during a crisis (response), and after the crisis (recovery). Each phase includes specific actions that need to be implemented in a coordinated manner by the actors intervening at the border. Clear roles, established communication channels, and agreed protocols for coordinated and complementary actions are fundamental to guarantee the continuous functioning of the border in times of crisis. The three stages of intervention for HBM are outlined below[125].

Figure 4: IOM's Three Stages of Intervention for Humanitarian Border Management[126]



[124] IOM, n.d.c.
[125] IOM, 2019c.
[126] IOM, n.d.c

PREPAREDNESS AND MITIGATION IN AN OSBP SETTING (PRE-CRISIS)

Preparedness refers to the knowledge and capacities developed by governments, response and recovery organizations, communities and individuals to effectively prepare for and reduce the effects of disasters. During this phase, border administrations should act to reduce the potential impact of such events.

Mitigation can be defined as the lessening or minimizing of the adverse impacts of a hazardous event. The adverse impacts of hazards, in particular natural hazards, often cannot be fully prevented, but their scale or severity can be substantially lessened through various strategies and actions. Mitigation measures include adopting engineering techniques, implementing hazard-resistant constructions, and improving environmental and social policies and public awareness, which serve to reduce the vulnerability of affected communities and strengthen their capacity to manage an emergency and safeguard their assets.

To strengthen preparedness and mitigation before or in the early stages of a crisis at OSBPs, the following are required:

- **Emergency planning:** Border administrations should be involved in their national government's overall emergency planning and preparation efforts to manage crisis, including by assessing capacities and determining surge capacities, and conducting situational context analysis to understand the risks. Border administrations should also engage in advocacy efforts to promote their involvement in this area. This can also include
- **Update legislation, regulations, and administrative processes**: The legislation, regulations, and administrative processes of national border agencies should contain provisions to expedite the movement of relief goods and ensure the continuity of supply chains in the aftermath of disasters, pandemics, and other disruptive events. This may include the possibility to keep physical inspections to the bare minimum, and accepting declarations and supporting documents that satisfy minimum requirements for security and compliance, based on risk management principles.
- **International standards and human rights:** Border administrations should align their procedures and processes with international standards, including international human rights

standards, and implement international instruments and tools. While this can be a long-term process that requires significant planning, it also holds the potential to significantly enhance preparedness efforts.

- **Standard Operating Procedures (SOPs):** Border administrations should enhance their preparedness by producing SOPs that are specific for crisis management. SOPs describe operations that border officials and other stakeholders should carry out to ensure the expedited movement of relief aid, essential goods and persons in the event of a disaster.
- **Early warning systems and emergency communications**: These should be developed to prepare for and mitigate the impact of future risks. These systems should leverage technology and common data and information system standards to ensure the precision and accuracy of data, as well as facilitate interoperability and data-sharing between relevant agencies. This can benefit disaster relief efforts by resulting in improved transparency and risk management, the expedited clearance of relief goods and persons, and enhanced compliance and safety standards.
- **National training plans and capacity-building:** Partner States are encouraged to design and implement national training plans and conduct capacity-building to ensure that border officials are qualified and able to manage emergency situations effectively. This may include:
    i. Incorporating disaster management in border officials training plans at all hierarchy levels.
    ii. Ensuring training modules contain disaster-relief related measures, such as actions and measures to be implemented by border officials to mitigate the impact of disasters, ensure the continuity of operations, and process special items, such as relief and essential goods and the personal possessions of relief personnel.
    iii. Regularly reviewing training plans to ensure they are up-to-date, incorporate best practices and lessons learned from previous emergencies, and enable cooperation with other border administrations to enhance peer-learning and sharing of experiences.
- **Cooperation and partnerships:** Border agencies and stakeholders should cooperate and strengthen partnerships to prepare for a crisis, such as by establishing inter-agency national emergency plans. In the event of a crisis, border administrations are expected to establish

simplified and harmonized procedures that ensure that supply chains remain uninterrupted and stable, while also facilitating the rapid clearance of relief consignments, essential goods and persons. Health and safety risks should also be appropriately addressed.

RESPONDING TO A CRISIS IN AN OSBP SETTING (IN-CRISIS)

Preparedness and mitigation measures can help reduce the impact of a crisis, but they are not sufficient to avoid the likelihood of a crisis taking place. While it may not be possible to predict the types of incidents that could threaten the continuity of border operations, pre-crisis planning should inform efforts to respond to a crisis at an OSBP by providing tailored responses according to specific scenarios, such as natural disasters and epidemics. Building on coordination efforts undertaken at the pre-crisis stage, cooperation should be strengthened between government agencies to ensure effective relief and assistance operations, including by creating a rapid and effective control mechanisms, and enacting bilateral or multilateral agreements on mutual recognition of border controls to avoid the unnecessary duplication of controls.

Border administrations need to be prepared to trigger specific measures to crisis, address pandemics and disaster-related challenges. The following measures are critical:

- **Registration and Collection of Data:** Border administrations should support the registration and collection of data on migration movements. This should also involve the registration of eligible humanitarian actors. The criteria for legislation should be outlined in domestic law.
- **Referral mechanisms and Emergency Operations Centre (EOC):** Border administrations should screen, identify, and create referral mechanisms and systems for vulnerable people during a crisis. To support this, an Emergency Operations Centre (EOC) should be established as a centralized command and control space where different border administrations can plan, prepare for, and respond to a wide variety of disruptive events.
- **Evacuation and search-and-rescue operations:** An effective response also requires the effective use of evacuation and search-and-rescue operations, and the deployment of rapid mobile intervention teams and the provision of mobile assistance. The details for these should be developed in the pre-crisis stage, and can be outlined in an SOP. To assist these teams, the procurement of mobile registration and communications equipment is needed.

- **Emergency services**: During a crisis, people on the move should also be able to benefit from emergency consular services, assistance in readmission, and return to a third country. While this may not be available at the OSBP, border officials should be able to refer vulnerable populations to services that can assist in this regard, such as UN agencies.

As the conditions of any given crisis can change rapidly, it is also essential that border officials are able to adapt their work environment and modus operandi accordingly. For example, if infrastructure becomes damaged, or there is need to reduce the number of staff due to risk of infection, border administrations should encourage teleworking and adopt innovative processes and technology to facilitate recognition and validation procedures. Additionally, effective communication channels should be established between all stakeholders involved in a crisis. It is strongly recommended that border administrations avoid making last-minute changes to procedures and regulations, and that when changes do occur, officials are notified through Trade Information Portals or other consolidated web-based platforms.

RECOVERING FROM A CRISIS IN AN OSBP SETTING (POST-CRISIS)

The various phases of crisis management are not easy to disentangle. This is particularly the case during the response and recovery phases, as most of the measures extend to, and are applied during, the recovery phase, despite the fact that they might also apply during the response phase. Given the possibility of disruptive events occurring, border administrations should implement flexible measures that enable them to keep at least part of their main operation running, while also enabling them to adjust to the emergency situation with the option of resuming their full functions once the response phase comes to an end. To achieve this, they should establish a clear plan and determine the next steps needed to return to business-as-usual. Given the blurred lines between the response and recovery phases, border administrations are advised to:

- **Maintain the task force in charge of managing crises:** This is critical as the experience gained by these teams should then be leveraged when the recovery action plans are being prepared. These teams should also be authorized to coordinate with stakeholders to gather the information needed to analyse the impact of the emergency and coordinate border

activities with other government agencies, thereby avoiding duplication and the overlapping of actions.

- **Conduct assessments of the impact of interventions:** These assessments which should include the impact of the crisis, the status of work restrictions, the effectiveness of measures implemented during the response, and the identification of backlogs for those activities and tasks, which were delayed or postponed during the crisis. Based on this analysis some of those exceptional measures may be maintained, further developed, or phased out. The assessment should also inform whether any changes or updates are needed to national legislative and institutional frameworks to fill gaps that might have become evident during the crisis, and whether updates are needed to IT solutions to ensure that border officials can benefit from a competitive advantage when crises occur.
- **Develop recovery action plan:** Importantly, these assessments should also inform the development of a recovery action plan established by border administrations. As part of this plan, border administrations should regularly monitor the health, safety, and readiness of their staff to ensure that they are able to satisfy the requirements of the recovery plan, while continuing to apply safety and health protocols, particularly as crises can impact the physical and mental health of border officials.
- **Restore infrastructure:** Steps should be taken to restore infrastructure damaged during the crisis, while maintaining the functioning of secure but protection-sensitive borders.
- **Implement integration or return programmes**: These programmes should be implemented to support displaced persons affected by the crisis, in coordination with relevant stakeholders, such as UN entities.
- **Continue trainings and capacity-building**: The training and capacity-building for border officials and immigration authorities undertaken prior to and during the crisis should continue, with upgraded curricula updated with the lessons learnt from the recent crisis. Additional training for border officials who were not involved in the management of the response phase should be provided to acquaint them with the newly deployed IT solutions and with new procedures.

- **Revise any SOPs and Business Continuity Plans**: The SOPs and Business Continuity Plans developed prior to and during the crisis should be revised in light of potential lessons learned that could improve future disaster management processes. Lessons learned can be identified through formal reviews or informal discussions with staff and volunteers, among other means.
- **Ensure clear communication and knowledge-sharing**: Throughout all stages of disaster management, the steps taken to prepare for, mitigate, respond to, and recovery from the crisis should be clearly communicated to stakeholders involved. Efforts to disseminate knowledge can also include public-awareness campaigns.

While humanitarian border management refers to all aspects that affect people during crises, it is also important to keep in mind the specific requirements needed for different types of disasters. Given the prevalence of natural disasters in the region, and the recent experience of the COVID-19 pandemic, this manual will focus on disaster management during a natural disaster, and during a health emergency or pandemic, in more detail below.

8.3 NATURAL DISASTERS IN AN OSBP SETTING

Natural disasters carry enormous implications for migration clearance processes at border crossings, as they can result in people being forcibly displaced following the destruction of their livelihoods or homes, while also contributing to people making the decision to migrate – including across borders – as a climate adaptation strategy. Attempts to manage borders during disasters, has also become increasingly urgent as the frequency of natural hazards and the incidence of extreme weather events has increased as a result of climate change, which disrupts the lives of many communities, especially in developing countries.

The United Nations Office for the Disaster Risk Reduction (UNDRR) defines the terminology related to disasters as follows[127]:

CAPACITY

The combination of all the strengths, attributes, and resources available within an organization, community or society to manage and reduce disaster risks and strengthen resilience.

DISASTER

A disaster is a serious disruption of the functioning of a community or a society at any scale due to hazardous events interacting with conditions of exposure, vulnerability and capacity, leading to one or more of the following: human, material, economic and environmental losses and impact.

DISASTER MANAGEMENT

The organization, planning and application of measures preparing for, responding to, and recovering from disasters.

DISASTER RISK

The potential loss of life, injury, or destroyed or damaged assets which could occur to a system, society or a community in a specific period of time, determined probabilistically as a function of hazard, exposure, vulnerability and capacity.

DISASTER RISK REDUCTION (DRR)

Disaster risk reduction is aimed at preventing new and reducing existing disaster risk and managing residual risk, all of which contribute to strengthening resilience and therefore to the achievement of sustainable development.

[127] UNDRR, n.d. For an exhaustive list of Sendai Framework Terminology on Disaster Risk Reduction, see: https://www.preventionweb.net/drr-glossary/terminology.

HAZARD

A process, phenomenon or human activity that may cause loss of life, injury or other health impacts, property damage, social and economic disruption or environmental degradation.

SLOW-ONSET DISASTER

A type of disaster that emerges gradually over time. Slow-onset disasters could be associated with drought, desertification, sea-level rise, epidemic disease.

SUDDEN-ONSET DISASTER

A disaster triggered by a hazardous event that emerges quickly or unexpectedly. Sudden onset disasters can be associated with earthquakes, volcanic eruption, or flash-floods, among others.

RESILIENCE

The ability of a system, community or society exposed to hazards to resist, absorb, accommodate, adapt to, transform and recover from the effects of a hazard in a timely and efficient manner, including through the preservation and restoration of its essential basic structures and functions through risk management.

VULNERABILITY

The conditions determined by physical, social, economic and environmental factors or processes, which increase the susceptibility of a community to the impacts of hazards.

KEY ACTORS IN DISASTER MANAGEMENT

To provide a coordinated and more efficient response when a disaster occurs, it is important to identify all relevant actors that are intervening during a disaster or that should be consulted in the response. As outlined by the World Customs Organization, this may include but it is not limited to the following actors[128]:

[128] WCO, 2021.

i. **The Government:** The Government should be involved at all levels, including local, central, and regional levels. The crisis administration mechanism depends on the resources and targets of the government. The National Government should therefore be the main entity responsible for allocating an annual budget for the purpose of disaster management.

ii. **Non-Governmental Organizations** (NGOs): NGOs are key actors in the disaster response phase and actively contribute to the support and protection of impacted communities.

iii. **Donors:** Donors can offer help to support in all phases of a crisis, both in terms of technical expertise and financial support.

iv. **The private sector:** This sector may be indirectly involved by effectively contributing and supporting the efforts deployed by the Government to tackle disaster management at all levels.

v. **Regional bodies:** Given the transboundary nature of crisis, regional cooperation and collaboration among neighboring countries is key to ensure that countries can assist each another in the prevention and mitigation of natural hazards.

FRAMEWORKS AND APPROACHES FOR ADDRESSING DISASTER RISK REDUCTION

In recent years, the need to integrate migrants into Disaster Risk Reduction (DRR) policies and practices has received significant attention. Frameworks and policies that protect the dignity and rights of migrants, including those that aim to improve their living and working conditions, can significantly reduce migrants' vulnerability to the impacts of natural disasters, provided they are effectively implemented. Similarly, targeted frameworks and policies that seek to strengthen and increase migrants' awareness, preparedness, and capacity to cope with and recover from natural disasters are also crucial.

Table 4: Targeted Frameworks on DRR Relevant to Migration

1	The Hyogo Framework for Action (2005-2015)[129] *The HFA was the key instrument for implementing DRR between 2005 and 2015. Its overarching goal was to build resilience of nations and communities to disasters, by substantially reducing disaster losses by 2015 – in lives, and in the social, economic, and environmental assets of communities and countries.*
2	Sendai Framework for Disaster Risk Reduction (2015-2030)[130] *This is the current global blueprint for DRR until 2030, and the successor to the Hyogo Framework for Action. The Sendai Framework provides Member States with concrete priorities, targets, and actions to protect development gains from the risk of disaster. The Sendai Framework recognizes that while the State has the primary role to reduce disaster risk, responsibility should be shared with other stakeholders including local government, the private sector, and other stakeholders.*
3	The Global Compact for Safe, Orderly, and Regular Migration (2018)[131] *The GCM is the first intergovernmental agreement to cover all dimensions of international migration, and also reaffirms States' commitments to respecting, protecting, and fulfilling human rights for all migrants, including in disaster contexts.*

At the national level, States also have their own national laws, policies, and programmes on prevention, preparedness, and emergency response, which are aimed at reducing the impact of crises.

REDUCING MIGRANTS' VULNERABILITY TO NATURAL DISASTERS

However, while international and national frameworks can help reduce migrants' vulnerabilities to natural disasters if effectively implemented, their success in achieving these objectives is also influenced

[129] UN, 2005.
[130] UNDRR, 2015.
[131] UN, 2018.

by a range of economic, legal, and cultural factors that impact the well-being of migrants in ordinary circumstances, as outlined in IOM's Determinants of Migrant Vulnerability Model (see Section 8.1).

To reduce migrants' vulnerabilities to natural disasters, specific barriers to accessing information, resources, and services must be addressed, including by[132].:

- **Collecting disaggregated data on migrants' vulnerabilities to disasters**: This data is needed to fill gaps that currently exist in legal, policy, and institutional frameworks in relation to migrants' vulnerabilities to disasters and design evidence-based interventions
- **Expanding access to basic services to include migrants:** As many migrants remain excluded from basic services, this reduces their capacity to respond and cope with disasters, leading them more vulnerable to its impacts.
- **Empowering migrants:** Steps should be taken to create an enabling environment and the conditions that are conducive to the full participation of migrants in disaster risk reduction efforts, including by empowering them to participate, and producing and disseminating information, early warning systems, and emergency communications.
- **Adopting a migrant-centered lens:** Host country authorities in charge of disaster management should adopt a migrant-centered lens to ensure that migrants have access to information, resources, and assistance needed in times of disasters. Communication strategies with migrants are also most effectively when the authorities they address barriers to migrant participation, such as language barriers and differences in risk perception.
- **Engaging a variety of actors:** To support the inclusion of migrants in DRR, a variety of actors that could support efforts to reduce migrants' vulnerability during disasters, such as migrant representatives and groups, government authorities, and non-governmental and community-based organizations, should be engaged.
- **Including migrants in recovery efforts**: Migrants should be included in recovery frameworks and support mechanisms following a disaster, while host country's should also ensure that long-term recovery support for migrants is included in a host country's legislation or frameworks. A host country's recovery strategy will also be most effective when it considers all factors that contribute to marginalization, including but not limited to migratory status.

[132] IOM and Council of Europe, 2017.

8.4 HEALTH CRISES AND PANDEMICS IN AN OSBP SETTING

While natural disasters may present challenges for border administration - including as a result of damaged border facilities - health crises, such as pandemics, can cause additional challenges due to the high risk of infection faced by border administrations. The COVID-19 pandemic deeply impacted societies and placed the international community under enormous pressure to stop the spread of the virus, provide medical support where required, and distribute vaccines safely and securely. In response to the virus, many countries also implemented several measures, including border closures, travel restrictions, and intensive screening procedures at borders. While these measures saved lives, they also were, in many cases, uncoordinated, which caused unprecedented disruptions to the cross-border movement of goods and people.

As the COVID-19 pandemic demonstrated, the relationship between population mobility and health is dynamic and complex, as a health threat in one location can eventually pose a threat elsewhere due to the migration of people who may be infected, while the fact that hard-to-reach populations, which often involves migrants, are often excluded from accessing national health care systems, can create additional challenges. The health of individual migrants can also be affected by circumstances and challenges experienced in the migration process along the mobility continuum[133], while population movements can impact public health as mobile populations interact with host communities on a larger scale.

In addition, sometimes migrants who enter a new territory following a crisis require the attention of a health specialist. Migrants often arrive with health challenges due to diverse contexts and countries of origin where health and sanitation standards are challenging to enforce, while health crises and pandemics can themselves be a push factor that contribute to migratory patterns.

[133] The mobility continuum encompasses the complete pathway of movement, temporary or long-term, within and across borders, including at points or origin, transit, destination and return, routes through various modes of travel, and congregation points along the way.

To address these challenges, there are several global frameworks in place that include relevant guidance on how to manage migration at a border post during a health-related crisis. These include those outlined below.

Table 5: Targeted Frameworks on Health Relevant to Migration Management

1	The International Health Regulations (IHR) (2005) *The 2005 IHR includes the obligations and recommendations for countries to prevent, respond, and recover from public health emergencies of international concern (PHEIC) at land, air, and ports points of entry. WHO is the UN agency mandated to support countries to ensure compliance with the IHR, while promoting regular assessments, simulation exercises, external evaluations, and after-action reviews.*[134]
2	World Health Assembly Resolution on the Health of Migrants (2008)[135] *The 2008 World Health Assembly Resolution on the Health of Migrants requested Member States to take action to elaborate and implement policies and practices that are migrant-sensitive. The resolution and its successive Global Consultation on Migrant Health in 2010 are based on the principle that "the health of migrants and health matters associated with migration are crucial public health challenges faced by Governments and societies." The consultation in particular outlines the following key priorities: monitoring migrants' health including through the standardization of data collection systems, ensuring that policies and legal frameworks are migration-sensitive and inclusive, enhancing the capacity of national health systems and border management services, and ensuring an inter-sectoral and multi-country partnership and network. The World Health Assembly Resolution on Migrants' Health also outlines four principles: (i) policies and legal framework on health, border, and mobility management; (ii) operational research, evidence, data gathering, and sharing; (iii) enhanced capacity of health systems and border management services; and (iv) inter-sectoral and multi-country partnerships and network.*

[134] WHO, n.d.
[135] WHO, 2008; WHO, 2010.

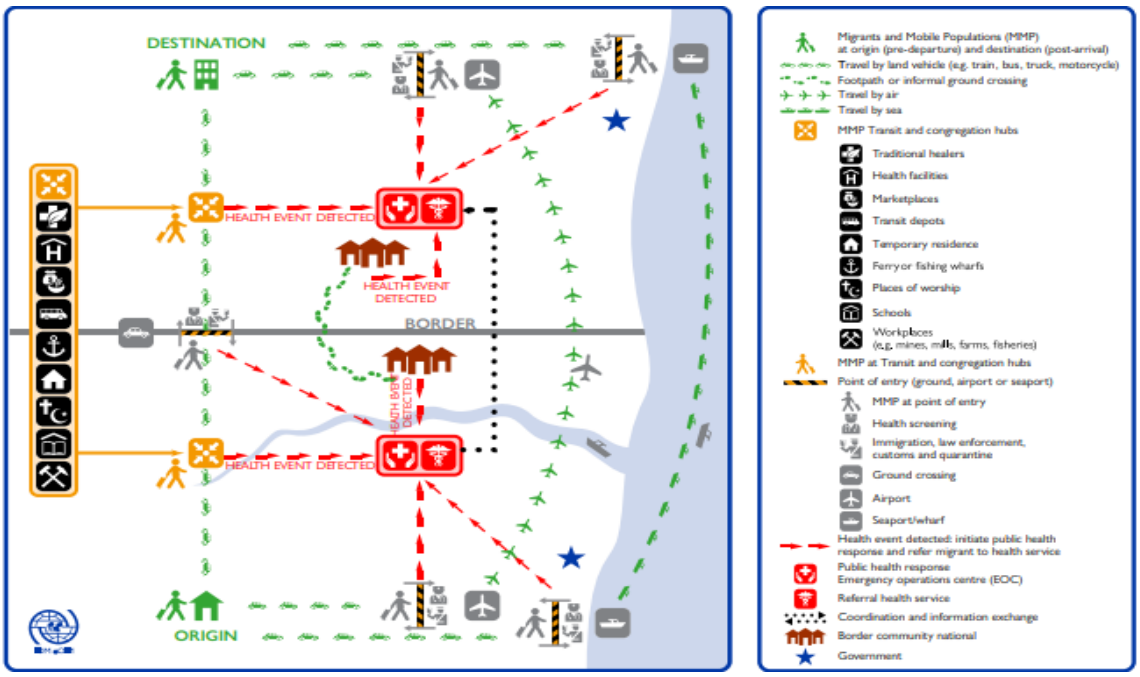
3	Health, Border, and Mobility Management (HBMM)[136] *The HBMM framework was conceived by the International Organization for Migration to support partner States and relevant actors to limit the spread of communicable diseases across an international border, while ensuring that affected and at-risk populations and communities benefit from appropriate and timely assistance. The HBMM entails the post crisis management of migrants exposed or vulnerable to epidemics or pandemics and aims to respond to disease outbreaks and prepare for future health threats. The operationalization of HBMM is guided by the four principles of the World Health Assembly Resolution on Migrants' Health outlined above. In conducting HBMM, it is critical that migration officers and border post stakeholders recognize the human rights of the migrants in relation to health access. The border management stakeholders should also support vulnerable groups in crossing borders to pursue health and safety services, when needed.*
4	The African Union (AU) Health Policy Practice[137]*At the regional level, the African Union Health Policy practice informs health practices along the borders. Guided by these sets of principles port health officials should take charge in identifying and directing any individuals seeking to enter a country, as appropriate, by examining the health status of travellers and certifying they are safe to exit or enter a territory; establishing that every traveller has statutory health documentation/requirements as required by law; and examining the itinerary of a traveller to determine if they passed through vulnerable and risky health territories; and recommending further remedial action before allowing entry, if necessary.*

However, while the frameworks outlined above provide useful guidance, well-coordinated, system-wide, and multisectoral action on the ground is also needed to respond to health threats, while protecting migrants and people on the move.[138] Additionally, while the need for risk prevention is

[136] IOM, 2021.
[137] AU, 2016.
[138] IOM, 2021.

commonly perceived as a set of measure to be taken at the point of entry itself, the COVID-19 pandemic demonstrated the need for enhanced surveillance along all parts of the mobility continuum.

Figure 5: The mobility continuum and its links with communicable disease prevention, detection, and response[139]



Consequently, preparedness and response to a health crisis need to include a set of measures that include various factors along all points of the mobility continuum, as well as the impact on mobile populations, host communities, communities of origin and the border. In line with the four main pillars identified through the HBMM approach, key actions to consider include the following:

i. **Ensure policies and legal frameworks** incorporate aspects of HBMM. Port health procedures and regulations should take international legal framework for health management and practice into consideration. These may include adopting WHO provisions on management of pandemics and epidemics in the national health institutions; initiating bilateral management of health risks in an OSBP during an epidemic or pandemic; establishing bilateral plans of action with neighboring countries; ensuring inclusivity in port health management plans to ensure that migrants can receive equal but distinguished health service needs.

[139] IOM, 2021.

ii. **Operational research, evidence, data gathering, and sharing:** Despite acknowledgement that human mobility contributes to the spread of communicable diseases, data and evidence supporting this claim is scarce. This action includes conducting needs assessments, operational research, and data collection, surveillance, data analysis and risk mapping, and data dissemination and reporting.

iii. **Enhanced capacity of health systems and border management services.** Information on health and mobility needs to be translated into better health and border management services, including through the development of Standard Operating Procedures (SOPs), stimulation of PHEIC events, health screenings and referral systems, health management and public health response, and the provision of infrastructure and supplies. It is also recommended to prepare contingency plans to enable infrastructure to be quickly deployed at key border points, border operations to be quickly restored, and supply chains to remain stable and uninterrupted. Under the pillar, the following actions are also recommended:

- **Safeguard the health of staff at the border,** including by setting up appropriate health and safety protocols, providing Personal Protective Equipment (PPE) and raising awareness and informing all relevant stakeholders, including not only border officials, but also brokers and drivers, of these risks.
- **Conduct training** for border staff, including border officials, customs brokers, humanitarian operators, and other stakeholders, at ports of entry or at headquarters, who may be required, in the event of an emergency, to contribute to the coordination and supervision of relief operations.
- **Implement extraordinary procedures to enhance border surveillance** while ensuring continuity of border procedures. Technological solutions should also be encouraged to enhance contactless procedures for passenger screening and law enforcement at borders. These solutions may include e-declarations provided via the internet or mobile apps, e-gates, and facial recognition or other biometrics systems. When the risk of infection is high and movement from one place to another is risky, tele-working and online training should be considered.

iv. **Inter-sectoral and multi-country partnerships and network.** This is needed to engage target population and communities in adopting healthy behaviors, and ensuring buy-in from partners outside the health sector and across the border. This can include social mobilization initiatives to enhance the engagement of the community in curbing the spread of epidemics and pandemics, and ensure that there is adequate monitoring of the people operating in the OSBP environment. Coordination should also involve border management authorities, law enforcement, military, trade, and commercial actors.

Lastly, it is also encouraged that officials ensure continuity of regular security measures in parallel to emergency measures, and not neglected. Crisis that disrupt the everyday operations of global supply chains and border processes can be seen as advantageous by criminal groups and individuals who may attempt to carry out illicit activities, such as the smuggling of prohibited and restricted goods, or commit other offences, including fraud and money laundering.

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